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TITLE 3—THE PRESIDENT

EXECUTIVE ORDER 10760

CREATING AN EMERGENCY BOARD TO INVESTIGATE A DISPUTE BETWEEN THE TRANS WORLD AIRLINES, INC., AND CERTAIN OF ITS EMPLOYEES

WHEREAS a dispute exists between the Trans World Airlines, Inc., a carrier, and certain of its employees represented by the Flight Engineers' International Association, a labor organization; and

WHEREAS this dispute has not heretofore been adjusted under the provisions of the Railway Labor Act, as amended, and

WHEREAS this dispute, in the judgment of the National Mediation Board, threatens substantially to interrupt interstate commerce to a degree such as to deprive a section of the country of essential transportation service:

NOW, THEREFORE, by virtue of the authority vested in me by section 10 of the Railway Labor Act, as amended (45 U. S. C. 160), I hereby create a board of three members, to be appointed by me, to investigate the said dispute. No member of the said Board shall be pecuniarily or otherwise interested in any organization of airline employees or any carrier.

The Board shall report its findings to the President with respect to the said dispute within thirty days from the date of this order.

As provided by section 10 of the Railway Labor Act, as amended, from this date and for thirty days after the Board has made its report to the President, no change, except by agreement, shall be made by the Trans World Airlines, Inc., or by its employees, in the conditions out of which the said dispute arose.

DWIGHT D. EISENHOWER

THE WHITE HOUSE,
March 27, 1958.

[F. R. Doc. 58-2378; Filed, Mar. 27, 1958; 12:01 p. m.]

EXECUTIVE ORDER 10761

GOVERNMENT PURCHASES OF CRUDE PETROLEUM AND PETROLEUM PRODUCTS

WHEREAS, following the receipt of advice from the Special Committee to Investigate Crude Oil Imports, I have determined that essential national security interests are adversely affected by the purchase by the United States of crude petroleum imported in quantities in excess of those now or hereafter specified under the Voluntary Oil Import Program or of petroleum products refined in the United States and composed of or derived from such crude petroleum, in whole or in part; and

WHEREAS I have determined that such purchases would not be in the public interest:

NOW, THEREFORE, by virtue of the authority vested in me by the Constitution and statutes, and as President of the United States, it is hereby ordered as follows:

SECTION 1. For the purposes of the application of the act of March 3, 1933, 47 Stat. 1520, 41 U. S. C. 10a–10c; 63 Stat. 1024, 41 U. S. C. 10d, commonly known as the Buy American Act, pursuant to this order: "domestic petroleum product" means crude petroleum of wholly domestic origin and any product refined in the United States entirely from such crude petroleum; "non-domestic petroleum product" means crude petroleum not wholly of domestic origin and any product refined in the United States which is not derived entirely from crude petroleum of domestic origin; "complying petroleum product" means crude petroleum of foreign origin or any product refined in the United States in whole or in part from crude petroleum of foreign origin, all of which has been, or will be imported by a firm which, during the period of contract performance and for the three months preceding the month in which a bid is submitted to a Government department or agency, has imported crude petroleum in compliance with the Voluntary Oil Import Program.

SEC. 2. The heads of all executive departments and agencies are requested to re-examine existing policy with respect to the application of the Buy American Act to petroleum products and to apply the provisions of that act so that, (1) unless a domestic product is unavailable or its cost is determined to be unreasonable, the purchase of a non-domestic petroleum product will be made only if it is a complying petroleum product, and (2) in considering bids no

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FEDERAL REGISTER

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CFR SUPPLEMENTS
(As of January 1, 1958)

The following Supplements are now available:

Title 8, Rev. Jan. 1, 1958 ($3.25)
Title 9 ($0.75)
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price differential will be applied between domestic and complying petroleum products.

SEC. 3. Every contract entered into by any executive department or agency for the purchase in the United States of imported crude petroleum or petroleum products refined in the United States and derived in whole or in part from imported crude petroleum shall contain the following provision: "The contractor agrees that during the contract period he will comply in all respects with the Voluntary Oil Import Program."

SEC. 4. The Administrator, Voluntary Oil Import Program, is authorized to issue certificates of compliance with the Voluntary Oil Import Program which may be accepted as conclusive evidence of such compliance. In the absence of such a certificate, a certification or rep-

resentation of compliance made by the supplier may be considered presumptive evidence of compliance.

SEC. 5. Executive Order No. 10582 of December 17, 1954, "Prescribing Uniform Procedures for Certain Determinations under the Buy American Act," shall not be applicable to crude petroleum and petroleum products.

SEC. 6. This order shall be applicable to contracts entered into thirty days after the date hereof.

DWIGHT D. EISENHOWER

THE WHITE HOUSE,
March 27, 1958.

[F. R. Doc. 58-2379; Filed, Mar. 27, 1958; 12:01 p. m.]

RULES AND REGULATIONS

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PART 6—EXCEPTIONS FROM THE COMPETITIVE SERVICE

DEPARTMENT OF STATE

Effective upon publication in the FEDERAL REGISTER, paragraph (o) (3) of § 6.302 is revoked, the headnotes of paragraphs (f) and (p) are amended, and paragraphs (f) (2), (3), (4), (5) and (p) (1) and (4) are amended as set out below.

§ 6.302 *Department of State.* * * *

(f) *Bureau of Intelligence and Research.* * * *

(2) Director of Intelligence and Research.

(3) Deputy Director of Intelligence and Research.

(4) One Private Secretary to the Deputy Director of Intelligence and Research.

(5) One Assistant to the Director of Intelligence and Research.

* * * * *

(p) *Office of the Assistant Secretary for Administration.* (1) One Private Secretary to the Assistant Secretary.

* * * * *

(4) One Confidential Assistant to the Assistant Secretary.

(R. S. 1753, sec. 2, 22 Stat. 403, as amended; 5 U. S. C. 631, 633)

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] WM. C. HULL,
Executive Assistant.

[F. R. Doc. 58-2311; Filed, Mar. 27, 1958; 8:50 a. m.]

PART 6—EXCEPTIONS FROM THE COMPETITIVE SERVICE

FEDERAL COMMUNICATIONS COMMISSION

Effective upon publication in the FEDERAL REGISTER, paragraph (c) of § 6.334 is revoked.

(R. S. 1753, sec. 2, 22 Stat. 403, as amended; 5 U. S. C. 631, 633)

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] WM. C. HULL,
Executive Assistant.

[F. R. Doc. 58-2312; Filed, Mar. 27, 1958; 8:50 a. m.]

TITLE 6—AGRICULTURAL CREDIT

Chapter IV—Commodity Stabilization Service and Commodity Credit Corporation, Department of Agriculture

Subchapter D—Regulations Under Soil Bank Act

[Amdt. 6]

PART 485—SOIL BANK

SUBPART—ACREAGE RESERVE PROGRAM

MISCELLANEOUS AMENDMENTS

The regulations containing the general provisions governing the 1958 acreage reserve part of the Soil Bank Program, 22 F. R. 6397, as amended and supplemented, are hereby further amended as follows:

1. Section 485.308 (b), as amended, is hereby further amended by adding the following at the end thereof: "In any case where a farm which during 1957 participated in both the acreage reserve and conservation reserve programs is reconstituted for 1958, the acreage placed in the 1957 acreage reserve for any farm resulting from the reconstitution shall be determined as follows, both for the purposes of this paragraph and for the purposes of § 485.313 (f) (2): (1) In the case of a division of a farm, the acreage for each commodity in the 1957 acreage reserve shall be apportioned among the resulting farms on the same basis as the respective allotment was apportioned; (2) in the case of a combination of two or more farms or parts of farms, the acreage placed in the 1957 acreage reserve for the resulting farm shall be the sum of the acreage placed in the 1957 acreage reserve for each of the farms included in the combination for which a conservation reserve contract was in effect for 1957, except that if only a part of a 1957 farm is combined with another farm the 1957 acreage reserve for such part shall be determined in accordance with subparagraph (1) of this paragraph."

2. The third sentence of § 485.310 (b) (1), as amended, is hereby further amended to read as follows: "The producer must, not later than the final date for disposition under the marketing quota and price support programs, notify the office of the county committee that he has disposed of the excess acreage and pay the cost of determining the adjusted acreage, except that in the case of wheat the producer shall not be required to pay such cost."

3. Section 485.313 (c), as amended, is hereby further amended as follows:

(c) *Soil bank base crops.* The soil bank base crops shall consist of all crops produced for harvest on the farm other than (1) annual grasses pastured or cut for hay or ensilage, provided a crop of seed or grain was not harvested from such grasses, (2) biennial legumes, (3) perennial grasses and legumes, (4) annual legumes except soybeans, cowpeas, peanuts, field and canning peas, and field and canning beans, (5) land devoted to a garden primarily for home consumption, (6) orchards, vineyards, small fruits, and nursery stocks including woody ornamentals such as azaleas, roses and rhododendrons (flowers grown from seeds or bulbs for commercial use, and bulbs grown for commercial use, are soil bank base crops). Where more than one crop has been produced on the same acreage in the same year, the acreage shall be counted only once both for purposes of establishing the soil bank base and determining the 1958 acreage of soil bank base crops. If the farm was entered in the 1956 or 1957 acreage reserve program the smaller of (i) the number of acres which the producer agreed to place in the acreage reserve, or (ii) the number of acres by which the commodity was reduced below the farm allotment (or soil bank corn base in the case of 1956 corn agreements) shall be considered as being devoted to a crop of the commodity covered by the agreement and shall be included in determining the soil bank base: *Provided*, That if the amount of the reduction below the allotment, in the case of 1957 agreements, has not been determined at the time the farm soil bank base is established, the number of acres included in determining the base shall be that which the producer agreed to place in the acreage reserve: *Provided further*, That in no event shall the soil bank base exceed the cropland on the farm.

4. Section 485.313, as amended, is hereby further amended by redesignating paragraph (i) as paragraph (j) and by substituting the following paragraphs (h) and (i) in lieu of paragraph (h):

(h) *Disposal of acreage in excess of permitted acreage—(1) General.* The disposition of acreage in excess of that permitted shall be in such manner that no part of such excess can be harvested.

(2) *Crops for which acreage allotments are established.* In the case of soil bank base crops for which acreage allotments are established, disposition must be accomplished not later than the final date fixed for disposition under the marketing quota and price support programs and in a manner permitted under such programs, subject to the provisions of § 485.317 (b) (2) (i).

(3) *Crops for which acreage allotments are not established.* In the case of soil bank base crops for which acreage allotments are not established, any acreage planted to such crop (including volunteer seedings) shall be considered acreage devoted to a soil bank base crop, except where such crop is disposed of as provided in subdivision (i) of this sub-

paragraph, or used as a nurse or cover crop as provided in subdivision (ii) of this subparagraph.

(i) (*a*) If the State committee establishes a disposition date applicable to a crop which is prior to its maturity, any acreage of such crop which is turned under, cut off, or pastured off, or otherwise disposed of, to the extent that crop will not reach maturity, before the later of (*1*) such disposition date or (2) 15 days after the mailing date of Form CSS–572 "Notice of Measured Acreage—Soil Bank Program", but in no event later than the maturity of the crop, shall not be considered as acreage devoted to a soil bank base crop.

(*b*) If the State committee does not establish a disposition date which is prior to the maturity of a particular crop, any acreage of such crop which prior to maturity is turned under, cut off, or pastured off, or otherwise disposed of, to the extent that the crop will not reach maturity, shall not be considered as acreage devoted to a soil bank base crop.

(*c*) With respect to disposition under (*a*) and (*b*) of this subdivision, a crop planted on the acreage reserve as an approved cover crop may not be cut for hay or otherwise harvested after December 31, 1957, or grazed after December 31, 1957, except as provided in § 485.312 (b), even though such manner of disposition is permitted for compliance with allotments for purposes of marketing quotas and price support.

(*d*) Any disposition date established by the State committee shall be at least 15 days before the date the harvesting of the latest maturing crop in the area normally begins. The State committee may establish a single disposition date or may establish different disposition dates for different crops or groups of crops.

(ii) Any crop (including one planted under a Conservation Reserve Contract as a "G–1" practice—establishment and management of cover specifically beneficial to wildlife) which is used as a nurse crop or cover crop shall not be considered as acreage devoted to a soil bank base crop if the producer obtains written approval from the county committee for such use prior to the time disposition would otherwise be required under the provisions of subdivision (i) (*a*) or (*b*) of this subparagraph and none of such crop is harvested.

(4) *Notification of disposition by producer.* In the case of both allotment and non-allotment crops, if disposition is required under the applicable subparagraph (2) or (3) of this paragraph, the producer must, not later than the time specified for disposition, notify the office of the county committee that he has disposed of acreage in excess of that permitted and pay the cost of determining the adjusted acreage, except that where no crops other than wheat and peanuts are disposed of, the producer shall not be required to pay such cost if remeasurement of such acreage is also necessary for purposes of the marketing quota program and the cost thereof is borne by the Government under such program.

(i) *Effect of failure to dispose of acreage in excess of that permitted.* If the farm operator does not dispose of the acreage in excess of that permitted in accordance with the provisions of paragraph (h) of this section so that no part of such acreage can be harvested, the agreement shall not be deemed violated but the provisions of this paragraph shall apply.

(1) If the permitted acreage of soil bank base crops is zero, the producer shall not be entitled to any compensation under the agreement if he fails to dispose of all acreages planted to soil bank base crops.

(2) If the permitted acreage of soil bank base crops is more than zero, the producer shall not be entitled to any compensation under the agreement if the final acreage of soil bank base crops exceeds the permitted acreage of such crops by more than one acre or three percent, whichever is larger.

(3) If the permitted acreage of soil bank base crops is more than zero, and the final acreage of soil bank base crops exceeds the permitted acreage of such crops by not more than one acre or three percent, whichever is larger, the acreage otherwise eligible for compensation shall be reduced by the amount of such excess. If two or more agreements are in effect for a farm, any excess soil bank base acreage for which a reduction is to be made shall be apportioned among the agreements in the proportion that the acreage otherwise eligible for compensation under each agreement bears to the total acreage otherwise eligible for compensation under all agreements.

(4) If the farm operator is not given timely notice as to the correct number of acres planted to soil bank base crops in excess of that permitted, and the county committee determines that the producer made a reasonable effort, through measurement or otherwise, to dispose of the acreage in excess of that permitted, the acreage otherwise eligible for compensation shall not be reduced because of the failure to dispose of such acreage.

5. Section 485.313, as amended, is hereby further amended by adding a new paragraph (k) at the end thereof reading as follows:

(k) *Change in classification of crop.* Where the soil bank base used for an agreement is that established under a Conservation Reserve Contract in effect for the farm and the Conservation Reserve Contract is modified to include additional land in the conservation reserve, other than through reconstitution of the farm, the soil bank base under the Acreage Reserve Agreement, as well as under the Conservation Reserve Contract, shall be adjusted to reflect any change in the classification of a crop grown on the farm as a soil bank base crop since the soil bank base under the original Conservation Reserve Contract was established. In the case of such modification of a Conservation Reserve Contract, any such change in classification shall apply in determining the 1958 acreage of soil bank base crops on the farm, regardless of whether the change in classification results in an adjustment of the soil bank base. Any such adjustment and change in classification shall become effective upon modification of the Conservation Reserve Contract.

6. Section 485.315 (c), as amended, is hereby further amended to read as follows:

(c) *Limitation on compensation.* (1) The total of all acreage reserve payments for all commodities under the 1958 acreage reserve program to any producer with respect to any individual farm shall not exceed $3,000. In applying such limitation in cases where two or more individuals are interested in a farming operation as landowners, landlords, tenants or sharecroppers, the following rules shall be effective to determine whether such individuals are to be treated as one producer or as separate producers:

(i) A partnership shall be considered as one producer and compensation to the partnership shall not exceed $3,000 per farm. Individual members of the partnership may be considered as separate producers on the same farm, or recognized in another capacity on the same farm, as landowners, landlords, tenants or sharecroppers, only if (*a*) the individual members operating in a separate capacity are not identical with the membership of the partnership, and (*b*) the individual members also operated as separate producers or in a separate capacity as producers on the farm during 1957;

(ii) A corporation or association shall be considered as one producer and compensation to a corporation or association shall not exceed $3,000 per farm. A stockholder who owns the majority of the stock of a corporation or association shall not be considered as a separate producer on the same farm nor recognized in any other capacity on the same farm as a landowner, landlord, tenant or sharecropper;

(iii) An estate or trust shall be considered as one producer and compensation to an estate or trust shall not exceed $3,000 per farm. The sole beneficiary of an estate or trust shall not be considered as a separate producer on the same farm nor recognized in a different capacity on the same farm as landowner, landlord, tenant or sharecropper;

(iv) Two or more individuals operating as a group under an arrangement which, although lacking the legal elements of a partnership or corporation, is in the nature of a joint undertaking shall be considered as one producer and compensation to such a group shall not exceed $3,000 per farm. (Clubs, societies, fraternal and religious organizations, as well as informal arrangements between two or more individuals, are examples of such groups.) Individual members of the group shall not be considered as separate producers on the same farm nor recognized on the same farm in any other capacity as landowners, landlords, tenants or sharecroppers;

(v) A husband and wife shall not be considered as separate producers on the same farm nor recognized in any other capacity on the same farm as landowners, landlords, tenants or sharecroppers,

Other individuals having any family relationship may be considered as separate producers on the same farm or recognized in different capacities on the same farm only if such individuals also operated as separate producers or in separate capacities during 1957: *Provided*, That if such individuals are joint owners, subdivision (vi) of this subparagraph shall apply;

(vi) Individuals having a joint or common interest arising out of their interests in the ownership of a farm as joint tenants, tenants by the entirety or tenants in common shall not be considered as separate producers on the same farm nor recognized in any capacity on the same farm as landowners, landlords, tenants or sharecroppers.

(2) In the case of a producer-rice allotment placed on two or more farms, the aggregate amount of compensation payable to the producer on all farms shall not be in excess of the compensation that could have been earned if the allotment had been placed on the same number of farms on which the producer-rice allotment was placed (i) in 1957, or (ii) in 1955, 1956, and 1957, averaged together, if the county committee determines that the number of farms on which the allotment was placed in 1957 was not representative of the practice followed in previous years.

(3) In any case where a farm on which a winter wheat agreement is in effect is reconstituted for spring-planted commodities, but the wheat allotment is not redetermined, the total compensation which may be made to a producer under (i) the winter wheat agreement (or agreements if more than one farm is involved) plus (ii) any agreement for spring-planted commodities covering any farm or farms resulting from the reconstitution which contains any part of the farm or farms covered by the winter wheat agreement(s), shall not exceed $3,000, or the amount earned under the winter wheat agreements, whichever is higher.

(4) All or any part of the compensation which otherwise would be due any producer may be withheld, or required to be refunded, if he has adopted, or participated in adopting, any scheme or device, including the dissolution, reorganization, revival, formation or use of any corporation, partnership, estate, trust or other means, designed to evade the provisions of this paragraph.

7. Section 485.317 (b) is hereby amended to read as follows:

(b) *Definition of acreage*—(1) *Commodity covered by agreement.* In determining the acreage of the commodity covered by an agreement for the purposes of § 485.310, the definition of the acreage for such commodity under the marketing quota and price support programs shall apply, except that the provisions of such definitions which relate to the disposition of acreage in excess of the allotment shall, in the case of the acreage reserve program, apply to the disposition of acreage in excess of the acreage permitted to be harvested: *Provided*, That in the case of tobacco, acreage physically harvested and disposed of other than by marketing shall be included in determining the acreage for tobacco if such acreage is included for purposes of determining price support eligibility.

(2) *Soil bank base crops*—(i) *Allotment crops.* In determining the acreage of any soil bank base crop for which acreage allotments are established, both for purposes of establishing the farm soil bank base and determining the 1958 acreage of soil bank base crops, the definition of the acreage of such commodity under the marketing quota and price support programs shall apply, except that:

(*a*) In determining the 1958 acreage of soil bank base crops, the provisions of such definitions which relate to the disposition of acreage in excess of the allotment shall apply to the disposition of acreage in excess of the acreage permitted to be harvested;

(*b*) The acreage of peanuts shall include any acreage planted to peanuts which is harvested for hay or hogged-off, and any acreage from which the peanuts are marketed for consumption as boiled peanuts;

(*c*) The acreage of wheat shall include any acreage planted to wheat which is harvested for hay or ensilage: *Provided*, That if the soil bank base in effect is the base established under a Conservation Reserve Contract which includes 1957 as a part of the contract period and such contract is not modified to include additional land in the conservation reserve, or is so modified only through reconstitution of the farm, the acreage of wheat shall not include acreage planted to wheat which is harvested for hay or ensilage;

(*d*) Where a Conservation Reserve Contract is in effect for the farm and a "G-1" practice—Establishment and management of cover specifically beneficial to wildlife—has been established on the conservation reserve, such cover shall not be included in determining the acreage of any commodity if none of the crop is harvested.

(ii) *Non-allotment crops.* In determining, for purposes of establishing the farm soil bank base, the acreage of any soil bank base crops for which acreage allotments are not established, any acreage harvested shall be considered as acreage devoted to a soil bank base crop. The provisions of § 485.313 (h) shall apply for the purpose of determining the 1958 acreage of soil bank base crops for which acreage allotments are not established.

(3) *Compliance with allotments.* In determining whether there has been compliance with the acreage allotments for the farm for the purposes of § 485.314, the definition of the acreage for such commodity under the marketing quota and price support programs shall apply; however, in the case of tobacco, the last sentence of § 485.314 (b) shall be applicable.

8. Section 485.325 (c) (1) is hereby amended to read as follows:

(c) *New agreement limitations.* (1) If a new agreement, as provided in paragraph (b) of this section, is filed after the closing date, or after the county allocation of funds is exhausted, the maximum compensation payable under the new agreement(s) shall not exceed the maximum compensation payable under the original agreement.

(Sec. 124, 70 Stat. 198; 7 U. S. C. 1812)

Issued at Washington, D. C., this 25th day of March 1958.

[SEAL] TRUE D. MORSE,
Acting Secretary.

[F. R. Doc. 58-2314; Filed, Mar. 27, 1958; 8:50 a. m.]

[Amdt. 7]

PART 485—SOIL BANK

SUBPART—ACREAGE RESERVE PROGRAM

EXTENSION OF DATE FOR TERMINATING CORN, COTTON AND SPRING WHEAT AGREEMENTS

Section 485.309 (g) of the regulations containing the general provisions governing the 1958 acreage reserve part of the Soil Bank Program (22 F. R. 6397), as amended and supplemented, is hereby further amended as follows:

(g) *Termination or withdrawal of agreements.* (1) The operator may terminate the agreement by filing a written notice of such termination with the county committee not later than the closing date, or, in the case of corn, cotton and spring wheat not later than March 28, 1958.

(2) An agreement may not be withdrawn after the closing date, or, in the case of corn, cotton and spring wheat after March 28, 1958, even though the agreement has not been approved by the county committee. However, no agreement shall be in effect unless the agreement is approved by the county committee.

(3) Where an agreement is terminated or withdrawn on or before the applicable closing date pursuant to subparagraph (1) or (2) of this paragraph, the producers on the farm may, not later than such closing date, file a new agreement. Where an agreement for corn, cotton, or spring wheat is terminated or withdrawn after the applicable closing date pursuant to subparagraphs (1) or (2) of this paragraph, the producers on the farm may at the time of termination or withdrawal file a new agreement, but any such new agreement shall provide for a lesser amount of compensation than the original agreement. Any new agreement shall be subject to all of the provisions of §§ 485.301 to 485.338.

(4) The operator on any farm located in a county which is designated as a "new corn county" under regulations governing the establishment of 1958 corn acreage allotments may terminate any winter wheat agreement entered into with respect to the farm by filing written notice of such termination with the county committee prior to February 1, 1958.

(Sec. 124, 70 Stat. 198; 7 U. S. C. 1812)

Issued at Washington, D. C., this 25th day of March 1958.

[SEAL] TRUE D. MORSE,
Acting Secretary.

[F. R. Doc. 58-2315; Filed, Mar. 27, 1958; 8:50 a. m.]

TITLE 7—AGRICULTURE

Chapter VII—Commodity Stabilization Service (Farm Marketing Quotas and Acreage Allotments), Department of Agriculture

PART 725—BURLEY, FLUE-CURED, FIRE-CURED, DARK AIR-CURED, AND VIRGINIA SUN-CURED TOBACCO

PROCLAMATION OF RESULTS OF MARKETING QUOTA REFERENDA

Basis and purpose. Section 725.910 is issued to announce the results of the fire-cured (types 21–24) tobacco and dark air-cured (types 35 and 36) tobacco marketing quota referenda for the three marketing years beginning October 1, 1958. Under the provisions of the Agricultural Adjustment Act of 1938, as amended, the Secretary proclaimed national marketing quotas for fire-cured tobacco and dark air-cured tobacco for the 1958–59, 1959–60 and 1960–61 marketing years and announced the amounts of the national marketing quotas for fire-cured tobacco and dark air-cured tobacco for the 1958–59 marketing year (23 F. R. 669). The Secretary announced (23 F. R. 685) that referenda would be held February 18, 1958 to determine whether fire-cured tobacco producers and dark air-cured tobacco producers were in favor of or opposed to marketing quotas for the three marketing years beginning October 1, 1958.

§ 725.910 *Proclamation of the results of the fire-cured tobacco and dark air-cured tobacco marketing quota referenda for the three-year period beginning October 1, 1958*—(a) *Fire-cured (type 21) tobacco and fire-cured (types 22, 23 and 24) tobacco.* In a referendum of farmers engaged in the production of the 1957 crop of fire-cured (types 21–24) tobacco held on February 18, 1958, 8,821 farmers voted. Of those voting, 8,470, or 96.0 percent, favored quotas for a period of three years beginning October 1, 1958; 351, or 4.0 percent, were opposed to quotas. Therefore, the national marketing quota of 8,935,000 pounds for fire-cured (type 21) tobacco and the national marketing quota of 44,200,000 pounds for fire-cured (types 22, 23 and 24) tobacco, proclaimed January 29, 1958 (23 F. R. 669) for the 1958–59 marketing year, will be in effect for such year, and marketing quotas on fire-cured (types 21–24) tobacco will be in effect for the three marketing years beginning October 1, 1958.

(b) *Dark air-cured (types 35 and 36) tobacco.* In a referendum of farmers engaged in the production of the 1957 crop of dark air-cured (types 35 and 36) tobacco held February 18, 1958, 8,381 farmers voted. Of those voting, 8,093, or 96.6 percent, favored quotas for a period of three years beginning October 1, 1958, and 288 or 3.4 percent, were opposed to quotas. Therefore, the national marketing quota of 22,100,000 pounds proclaimed January 29, 1958 (23 F. R. 669) for dark air-cured (types 35 and 36) tobacco for the 1958–59 marketing year will be in effect for such year, and marketing quotas will be in effect on dark air-cured (types 35 and 36) tobacco for the three marketing years beginning October 1, 1958.

Since the only purpose of this proclamation is to announce the results of these referenda, it is hereby found and determined that with respect to this proclamation application of the notice and procedure provisions of the Administrative Procedure Act (5 U. S. C. 1003) is unnecessary.

(Sec. 375, 52 Stat. 66, as amended; 7 U. S. C. 1375. Interprets or applies sec. 312, 52 Stat. 46, as amended; 7 U. S. C. 1312)

Done at Washington, D. C., this 25th day of March 1958. Witness my hand and the seal of the Department of Agriculture.

[SEAL] TRUE D. MORSE,
Acting Secretary.

[F. R. Doc. 58-2292; Filed, Mar. 27, 1958; 8:47 a. m.]

Chapter IX—Agricultural Marketing Service (Marketing Agreements and Orders), Department of Agriculture

PART 998—MILK IN CORPUS CHRISTI, TEX., MARKETING AREA

ORDER SUSPENDING CERTAIN PROVISIONS

Pursuant to the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), hereinafter referred to as the "act", and of the order, as amended (7 CFR Part 998), regulating the handling of milk in the Corpus Christi, Texas, marketing area, hereinafter referred to as the "order", it is hereby found that:

(a) The following provisions: (1) § 998.44 (c) in its entirety and (2) the phrase "located not more than 225 miles distant by the shortest highway distance as determined by the market administrator" in § 998.44 (d) no longer tend to effectuate the declared policy of the act;

(b) Notice of proposed rule-making, public procedure thereon, and 30-day prior notice of the effective date hereof are found to be impracticable, unnecessary and contrary to the public interest in that (1) the issuance of this suspension order is necessary to reflect current marketing conditions and facilitate, promote, and maintain the orderly marketing of milk produced for the said marketing area; (2) unless this suspension order becomes effective April 1, 1958, hardship will result for certain handlers, since adequate manufacturing facilities are not available within 225 miles and when such milk is transported more than 225 miles to a manufacturing outlet, it must be accounted for as Class I milk; (3) a manufacturing plant located at Alice, Texas, which previously was available as an outlet for reserve supplies of milk has been closed; (4) this suspension order, which will permit milk transported more than 225 miles to a manufacturing outlet to be classified as Class II milk, has been requested by a handler and a substantial majority of the producers whose milk is regulated by the order; (5) this suspension order does not require of persons affected substantial or extensive preparation prior to its effective date; and (6) the time intervening between the date of this suspension order and its effective date affords persons affected a reasonable time to prepare for its effective date.

It is therefore ordered, That the following provisions be and hereby are suspended effective April 1, 1958:

1. Section 998.44 (c).

2. In § 998.44 (d) the phrase "located not more than 225 miles distant by the shortest highway distance as determined by the market administrator".

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Done at Washington, D. C., this 24th day of March 1958.

[SEAL] DON PAARLBERG,
Assistant Secretary.

[F. R. Doc. 58-2291; Filed, Mar. 27, 1958; 8:47 a. m.]

TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of the Treasury

[T. D. 54556]

PART 3—DOCUMENTATION OF VESSELS

APPLICATION FOR OFFICIAL NUMBER AND SIGNAL LETTERS FOR DOCUMENTED VESSEL

In order to eliminate the preparation of a copy for record purposes of each application received by the Bureau on customs Form 1320 for official numbers and signal letters for documented vessels, § 3.13 (c) of the Customs Regulations is amended by changing the third and fourth sentences to read: "When an official number is awarded, the Bureau will return the original to the collector from whom it was received. The collector shall make a notation of the official number awarded on the retained copy of the application and shall deliver the original to the applicant."

(R. S. 161, Secs. 2, 3, 23 Stat. 118, as amended, 119, as amended, R. S. 4177, as amended; 5 U. S. C. 22, 46 U. S. C. 2, 3, 45)

[SEAL] RALPH KELLY,
Commissioner of Customs.

Approved: March 21, 1958

A. GILMORE FLUES,
Acting Secretary of the Treasury.

[F. R. Doc. 58-2297; Filed, Mar. 27, 1958; 8:49 a. m.]

[T. D. 54555]

PART 5—CUSTOMS RELATIONS WITH CONTIGUOUS FOREIGN TERRITORY

IMPORTS FROM CONTIGUOUS COUNTRIES; MANIFESTS; REPORT OF ARRIVAL

The following amendment to the Customs Regulations is made to permit the

use of a copy of customs Form 7512 as a combined inward foreign manifest and direct exportation entry for certain importations of merchandise arriving from contiguous countries and entered for direct export.

The first sentence of § 5.1 (c) is amended to read: "When all the merchandise arriving on one vessel or vehicle is entered immediately upon arrival either under a single immediate transportation entry or a single transportation and exportation or direct exportation entry, the copy of customs Form 7512 to be retained at the port of first arrival may be adapted for use as a combined inward foreign manifest and in-bond transportation or direct exportation entry."

(Secs. 459, 624, 46 Stat. 717, as amended, 759; 19 U. S. C. 1459, 1624)

[SEAL] D. B. STRUBINGER,
Acting Commissioner of Customs.

Approved: March 20, 1958.

A. GILMORE FLUES,
Acting Secretary of the Treasury.

[F. R. Doc. 58-2296; Filed, Mar. 27, 1958; 8:49 a. m.]

TITLE 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

Subchapter C—Drugs

PART 146c—CERTIFICATION OF CHLORTETRACYCLINE OR TETRACYCLINE AND CHLORTETRACYCLINE- (OR TETRACYCLINE-) CONTAINING DRUGS

MISCELLANEOUS AMENDMENTS

Under the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 507, 59 Stat. 463, as amended; 21 U. S. C. 357, and sec. 701, 52 Stat. 1055, as amended; 21 U. S. C. 371) and delegated to the Commissioner of Food and Drugs by the Secretary (22 F. R. 1045), the regulations for certification of chlortetracycline and tetracycline drugs (21 CFR Part 146c; 21 CFR, 1956 Supp., 146c.218 (22 F. R. 6590), 146c.235 (22 F. R. 4885)) are amended as set forth below:

1. Section 146c.218 (b) (1) is changed to read as follows:

§ 146c.218 *Tetracycline hydrochloride.* * * *

(b) *Packaging.* * * *

(1) It shall be labeled with an expiration date that is 36 months after the month during which the batch was certified, except that it may be labeled with the date that is 48 months after the month during which the batch was certified if the person who requests certification has submitted to the Commissioner results of tests and assays showing that after having been stored for such period of time such drug as prepared by him complies with the standards prescribed by paragraph (a) of this section.

2. In § 146c.235 *Tetracycline hydrochloride-oleandomycin phosphate for aqueous injection* subparagraph (1) (iv) of paragraph (c) *Labeling* is amended by changing the number "12" to "18".

Notice and public procedure are not necessary prerequisites to the promulgation of this order, and I so find, since it was drawn in collaboration with interested members of the affected industry and since it would be against public interest to delay providing for these amendments.

Effective date. This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 701, 52 Stat. 1055 as amended; 21 U. S. C. 371. Interprets or applies sec. 507, 59 Stat. 463 as amended; 21 U. S. C. 357)

Dated: March 24, 1958.

[SEAL] GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F. R. Doc. 58-2295; Filed, Mar. 27, 1958; 8:48 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

PART 1—GENERAL RULES OF PRACTICE

DATE OF ACTION

MARCH 21, 1958.

The Commission's order of December 23, 1957, amended § 1.225 *Special rules of practice governing the procedure of the Temporary Authorities Board and the Transfer Board.* The first paragraph of that order erroneously referred to the Commission's action of abolishing the Motor Carrier Board as having taken place on October 21, 1956. The date on which that action was taken is October 21, 1957.

[SEAL] HAROLD D. MCCOY,
Secretary.

[F. R. Doc. 58-2293; Filed, Mar. 27, 1958; 8:48 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 1014]

[Docket No. AO-304]

HANDLING OF MILK IN MISSISSIPPI GULF COAST MARKETING AREA

NOTICE OF HEARING ON PROPOSED MARKETING AGREEMENT AND ORDER

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of a public hearing to be held in the Markham Hotel, Gulfport, Mississippi, beginning at 10:00 a. m. local time, on April 15, 1958, with respect to a proposed marketing agreement and order to regulate the handling of milk in the Mississippi Gulf Coast marketing area.

This public hearing is for the purpose of receiving evidence with respect to economic and marketing conditions, which relate to the proposed marketing agreement and order, hereinafter set forth, and any appropriate modifications thereof; and for the purpose of determining (1) whether the handling of milk in the area proposed for regulation is in the current of interstate or foreign commerce or directly burdens, obstructs, or affects interstate or foreign commerce, (2) whether there is need for a marketing agreement or order regulating the handling of milk in the area, and (3) whether provisions specified in the proposals or some other provisions appropriate to the terms of the Agricultural Marketing Agreement Act of 1937, as amended, will tend to effectuate the declared policy of the act.

The proposals set forth below have not received the approval of the Secretary of Agriculture.

Proposed by the Gulf Coast Dairymens Association, Gulfport, Mississippi, Louisiana-Mississippi Milk Producers Association, Franklinton, Louisiana, and Mississippi Milk Producers Association, Jackson, Mississippi:

DEFINITIONS

§ 1014.1 *Act.* "Act" means Public Act No. 10, 73d Congress as amended, and as reenacted and amended by the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.).

§ 1014.2 *Secretary.* "Secretary" means the Secretary of Agriculture of the United States or any other officer or employee of the United States authorized to exercise the powers or to perform the duties of the said Secretary of Agriculture.

§ 1014.3 *Department of Agriculture.* "Department of Agriculture" means the United States Department of Agriculture or any other Federal agency authorized to perform the price reporting functions specified in this part.

§ 1014.4 *Person.* "Person" means any individual, partnership, corporation, association, or other business unit.

§ 1014.5 *Cooperative association.* "Cooperative association" means any cooperative marketing association which the Secretary determines, after application by the association:

(a) To be qualified under the provisions of the act of Congress of February 18, 1922, as amended, known as the "Capper-Volstead Act"; and

(b) To have full authority in the sale of milk of its members and to be engaged in making collective sales of or marketing milk or its products for its members.

§ 1014.6 *Mississippi Gulf Coast marketing area.* "Mississippi Gulf Coast marketing area", hereinafter called the "marketing area", means all the territory within the following counties: Pearl River, Hancock, Harrison, Stone, Jackson, George, and Greene all within the State of Mississippi.

§ 1014.7 *Distributing plant.* "Distributing plant" means an approved plant from which Class I milk equals to not less than 70 percent of its receipts of producer milk and fluid milk products from other pool plants is disposed of during the months of September through January and which disposed of 50 percent of its receipts of producer milk during the months of February through August, on routes or through plant stores, to wholesale or retail outlets (except pool plants) and from which not less than 20 percent of such Class I milk is disposed of during the months on routes and through plant stores, to wholesale or retail outlets (except pool plants) located in the marketing area.

§ 1014.8 *Supply plant.* "Supply plant" means (a) an approved plant from which fluid milk products equal to not less than 60 percent of its producer milk, during the month, are shipped to distributing plants: *Provided,* That any plant which qualifies as a supply plant during each of the months of September through January shall be designated as a supply plant for the following months of February through August unless the operator of such plant notifies the market administrator on or before January 31, that such status is not desired.

§ 1014.9 *Pool plant.* "Pool plant" means either a distributing plant or a supply plant, except a plant operated by a producer-handler.

§ 1014.10 *Nonpool plant.* "Nonpool plant" means any milk manufacturing or processing plant other than a pool plant.

§ 1014.11 *Approved plant.* "Approved plant" means all of the buildings, premises, and facilities of a plant (a) in which milk or skim milk is processed or packaged and from which any fluid milk product is disposed of during the month on routes (including routes operated by vendors and sales through plant stores) to wholesale or retail outlet (except milk distributing or processing plants) located in the marketing area, or (b) from which milk or skim milk eligible for distribution in the marketing area under a Grade A label is shipped during the month to a distributing plant.

§ 1014.12 *Handler.* "Handler" means:

(a) A cooperative association with respect to milk of producers diverted for the account of such association from a pool plant to a nonpool plant in accordance with the provisions of § 1014.13; or

(b) Any person in his capacity as the operator of one or more approved plants: *Provided,* That if a person operates more than one pool plant he may, upon written application to the market administrator, be considered as a separate handler for the month with respect to one or more of his pool plants, if no fluid milk products or producers are transferred during the month between such plant(s) and other pool plant(s) of such handler.

§ 1014.13 *Producer.* "Producer" means any person, other than a producer-handler, who produces milk in compliance with Grade A inspection requirements of a duly constituted health authority which milk is received during the month at a pool plant: *Provided,* That if such milk is diverted from a pool plant by a handler to a nonpool plant for his account any day during the months of January through August, or on not more than 10 days during any other month, the milk so diverted shall be deemed to have been received at a pool plant at the location of the plant from which diverted.

§ 1014.14 *Producer milk.* "Producer milk" means only the skim milk or butterfat contained in milk (a) received at the plant directly from producers, or (b) diverted from a pool plant to a nonpool plant (except a nonpool plant which is fully subject to the pricing provisions of another order issued pursuant to the act) in accordance with the provisions of § 1014.13.

§ 1014.15 *Other source milk.* "Other source milk" means all skim milk and butterfat contained in: (a) Receipts during the month of fluid milk products except (1) fluid milk products received from pool plants, and (2) producer milk; and (b) products, other than fluid milk products, from any source (including those produced at the plant) which are reprocessed or converted to another product in the plant during the month.

§ 1014.16 *Producer-handler.* "Producer-handler" means any handler who produces milk and operates an approved plant and who received no milk from other producers or other approved plants or from a cooperative association or other source milk, and who disposes of less than a daily average of 3300 pounds of Class I milk through routes in the marketing area during the month.

§ 1014.17 *Chicago butter price.* "Chicago butter price" means the simple average, as computed by the market administrator, of the daily wholesale selling prices (using the midpoint of any range as one price) per pound of 92-score bulk creamery butter at Chicago as reported during the month by the Department of Agriculture.

§ 1014.18 *Fluid milk product.* "Fluid milk product" means all skim milk (including concentrated and reconstituted skim milk) and butterfat in the form of milk, skim milk, buttermilk, flavored milk, flavored milk drinks (including eggnog), yogurt, cream (other than frozen storage cream), cultured sour cream, and any mixture of cream and milk or skim milk (other than ice cream, ice cream mixes, and sterilized products contained in hermetically sealed containers).

MARKET ADMINISTRATOR

§ 1014.20 *Designation.* The agency for the administration of this part shall be a market administrator, selected by the Secretary, who shall be entitled to such compensation as may be determined by, and shall be subject to removal at the discretion of, the Secretary.

§ 1014.21 *Powers.* The market administrator shall have the following powers with respect to this part:

(a) To administer its terms and provisions;

(b) To receive, investigate, and report to the Secretary, complaints of violations;

(c) To make rules and regulations to effectuate its terms and provisions; and

(d) To recommend amendments to the Secretary.

§ 1014.22 *Duties.* The market administrator shall perform all duties necessary to administer the terms and provisions of this part, including, but not limited to, the following:

(a) Within 45 days following the date on which he enters upon his duties, or such lesser period as may be prescribed by the Secretary, execute and deliver to the Secretary a bond, effective as of the date on which he enters upon such duties and conditioned upon the faithful performance of such duties, in an amount and with surety thereon, satisfactory to the Secretary;

(b) Employ and fix the compensation of such persons as may be necessary to enable him to administer its terms and provisions;

(c) Obtain a bond in a reasonable amount and with reasonable surety thereon covering each employee who handles funds entrusted to the market administrator;

(d) Pay out of the funds provided by § 1014.95, the cost of his bond and of the bonds of his employees, his own compensation, and all other expenses, except those incurred under § 1014.94, necessarily incurred by him in the maintenance and functioning of his office and in the performance of his duties;

(e) Keep such books and records as will clearly reflect the transactions provided for in this part, and, upon request by the Secretary, surrender the same to such other person as the Secretary may designate;

(f) Submit his books and records to examination by the Secretary and furnish such information and reports as may be requested by the Secretary;

(g) Audit all reports and payments by each handler by inspection of such handler's records and of the records of any other handler or person upon whose utilization the classification of skim milk or butterfat for such handler depends;

(h) Publicly announce, at his discretion, unless otherwise directed by the Secretary, by posting in a conspicuous place in his office and by such other means as he deems appropriate, the name of any person who, after the date upon which he is required to perform such acts, has not made reports pursuant to §§ 1014.30 and 1014.31, or payments pursuant to §§ 1014.90, and 1014.93 through 1014.98;

(i) Publicly announce, by posting in a conspicuous place in his office and by such other means as he deems appro-

priate, and notify each handler in writing:

(1) On or before the 6th day of each month, the minimum price for Class I milk computed pursuant to § 1014.51 (a) and the Class I butterfat differential computed pursuant to § 1014.52 (a), both for the current month, and the minimum price for Class II milk computed pursuant to § 1014.51 (b) and the Class II butterfat differential computed pursuant to § 1014.52 (b), both for the previous month;

(2) On or before the 10th day after the end of each of the months of August through February, the uniform price computed pursuant to § 1014.71, and the butterfat differential computed pursuant to § 1014.91; and

(3) On or before the 10th day after the end of each of the months of March through July, the uniform prices for base milk and for excess milk, computed pursuant to § 1014.72; and the butterfat differential computed pursuant to § 1014.91;

(j) On or before the 12th day after the end of each month, report to each cooperative association which so requests, the percentage of producer milk delivered by members of such association, which was used in each class by each handler receiving such milk. For the purpose of this report, the milk so received shall be prorated to each class in accordance with the total utilization of producer milk by each handler; and

(k) Prepare and disseminate to the public such statistics and such information as he deems advisable and as do not reveal confidential information.

REPORTS, RECORDS, AND FACILITIES

§ 1014.30 *Reports of receipts and utilization.* On or before the 6th day after the end of each month each handler except a producer-handler, shall report to the market administrator in the detail and on forms prescribed by the market administrator for each of his approved plants for such month as follows:

(a) The quantities of skim milk and butterfat contained in receipts of producer milk; and for the months of March through July, the total quantity of base milk received;

(b) The quantities of skim milk and butterfat contained in fluid milk products received from other pool plants;

(c) The quantities of skim milk and butterfat contained in other source milk;

(d) Inventories of fluid milk products on hand at the beginning and end of the month; and

(e) The utilization of all skim milk and butterfat required to be reported pursuant to this section, including a separate statement of the disposition of Class I milk outside the marketing area.

§ 1014.31 *Other reports.* (a) Each producer-handler shall make reports to the market administrator at such time and in such manner as the market administrator may prescribe.

(b) Each handler, except a producer-handler, shall report to the market administrator in detail and on forms prescribed by the market administrator:

(1) On or before the 20th day after the end of the month for each of his fluid milk plants, his producer payroll for such month which shall show for each producer: (i) His name and address, (ii) the total pounds of milk received from such producer, including for the months of March through July, the total pounds of base and excess milk, (iii) the number of days on which milk was received from such producer if less than a full calendar month, (iv) the average butterfat content of such milk, and (v) the net amount of such handler's payment, together with the price paid and the amount and nature of any deductions;

(2) On or before the first day other source milk is received in the form of milk, fluid skim milk, or cream at his pool plant(s) his intention to receive such product, and on or before the last day such product is received, his intention to discontinue receipt of such milk;

(3) On or before the day prior to diverting producer milk pursuant to § 1014.13, his intention to divert such milk, the date(s) of such diversion and the nonpool plant to which such milk is to be diverted; and

(4) Such other information with respect to the utilization of butterfat and skim milk as the market administrator may prescribe.

(c) Each handler who receives producer milk for which payment is to be made to a cooperative association pursuant to § 1014.90 (e) shall report to such cooperative association with respect to each such producer, as follows:

(1) On or before the 20th day of each month, the total pounds of milk received during the first 15 days of the month;

(2) On or before the 10th day after the end of each month:

(i) The daily and total pounds of milk received during the month with separate totals for base and excess milk for the months of March through July, and the average butterfat test thereof; and

(ii) The amount or rate and nature of any deductions.

§ 1014.32 *Records and facilities.* Each handler shall maintain and make available to the market administrator during the usual hours of business, such accounts and records of his operations, together with such facilities as are necessary for the market administrator to verify or establish the correct data for each month with respect to:

(a) The receipt and utilization of all skim milk and butterfat handled in any form;

(b) The weights and butterfat and other content of all milk, skim milk, cream, and other milk products handled;

(c) The pounds of skim milk and butterfat contained in or represented by all milk, skim milk, cream, and milk products on hand at the beginning and end of each month; and

(d) Payments to producers, including any deductions authorized by producers, and disbursement of money so deducted.

§ 1014.33 *Retention of records.* All books and records required under this part to be made available to the market administrator, shall be retained by the handler for a period of three years to begin at the end of the calendar month, to which such books and records pertain: *Provided*, That if, within such three-year period, the market administrator notifies the handler in writing that the retention of such books and records, or of specified books and records, is necessary in connection with a proceeding under section 8c (15) (a) of the act or a court action specified in such notice, the handler shall retain such books and records, or specified books and records, until further written notification from the market administrator. In either case, the market administrator shall give further written notification to the handler promptly upon the termination of the litigation or when the records are no longer necessary in connection therewith.

CLASSIFICATION

§ 1014.40 *Skim milk and butterfat to be classified.* All skim milk and butterfat received within the month at pool plants and which is required to be reported pursuant to § 1014.30 shall be classified by the market administrator pursuant to the provisions of §§ 1014.41 through 1014.46.

§ 1014.41 *Classes of utilization.* Subject to the conditions set forth in §§ 1014.43 and 1014.44, the classes of utilization shall be as follows:

(a) *Class I milk.* Class I milk shall be all skim milk (including concentrated and reconstituted skim milk) and butterfat (1) disposed of in the form of milk, skim milk, buttermilk, flavored milk, flavored milk drinks (including eggnog), yogurt, cream (other than frozen storage cream), cultured sour cream, and any mixture of cream and milk or skim milk (other than ice cream, ice cream mixes, and sterilized products contained in hermetically sealed containers); (2) contained in inventory of milk and milk products designated as Class I milk pursuant to subparagraph (1) of this paragraph, on hand at the end of the month; and (3) not accounted for as Class II milk.

(b) *Class II milk.* Class II milk shall be all skim milk and butterfat (1) used to produce any product other than those designated as Class I milk pursuant to paragraph (a) of this section; (2) disposed of and used for livestock feed; (3) contained in skim milk dumped, provided the market administrator is notified in advance and given opportunity to verify such dumping; and (4) in shrinkage not to exceed 2 percent of skim milk and butterfat, respectively, in producer milk and other source milk.

§ 1014.42 *Assignment of shrinkage.* The market administrator shall assign shrinkage at the pool plant(s) of each handler as follows:

(a) Compute the shrinkage of skim milk and butterfat classified as Class II milk; and

(b) Assign the resulting amounts pro rata to the handler's receipts of skim milk and butterfat, respectively, in producer milk and in other source milk.

§ 1014.43 *Responsibility of handlers and reclassification of milk.* (a) All

skim milk and butterfat shall be Class I milk unless the handler who first receives such skim milk or butterfat can prove to the market administrator that such skim milk or butterfat should be classified otherwise;

(b) Any skim milk or butterfat shall be reclassified if verification by the market administrator discloses that the original classification was incorrect.

§ 1014.44 *Transfers.* Skim milk or butterfat disposed of each month from a pool plant shall be classified:

(a) As follows if transferred in the form of fluid milk products to the pool plant of another handler, except a producer-handler, unless utilization as Class II milk is claimed by both handlers in their reports submitted for the month to the market administrator pursuant to § 1014.30, subject in any event to the conditions set forth in subparagraph (3) of this paragraph:

(1) As Class I milk, if transferred from a distributing plant to a pool plant or from a supply plant to a supply plant;

(2) Pro rata to the amounts of skim milk and butterfat, respectively, remaining in each class in the plant(s) of the transferee handler after subtraction pursuant to § 1014.46 (a) (5) and the corresponding step of paragraph (b) thereof of any skim milk or butterfat classified pursuant to subparagraph (1) of this paragraph, if transferred from a supply plant to a distributing plant.

(3) (i) In no event shall the skim milk or butterfat assigned to Class II milk exceed the amount thereof remaining in Class II milk in the plant(s) of the transferee handlers after subtraction of other source milk pursuant to § 1014.46, and any additional amounts of such skim milk or butterfat shall be classified as Class I milk; and

(ii) If either or both handlers have other source milk during the month, the skim milk or butterfat so transferred shall be classified at both plants so as to allocate the greatest possible Class I milk utilization to producer milk of both handlers.

(b) As Class I milk if transferred to a producer-handler in the form of fluid milk products;

(c) As Class I milk if transferred or diverted in the form of bulk milk, skim milk, or cream to a nonpool plant, unless the following conditions are met:

(1) The transferring handler claims utilization in a product specified in § 1014.41 (b);

(2) The operator of the nonpool plant keeps adequate books and records showing the utilization of all skim milk and butterfat received at such plant, and the market administrator is permitted to audit such books and records for the purpose of verification; and

(3) The Class I milk in the nonpool plant does not exceed the receipts of butterfat and skim milk in milk received during the month from dairy farmers who the market administrator determines are the regular source of supply for such plant: *Provided*, That any Class I milk in excess of receipts from such dairy farmers shall be assigned to milk, cream, or skim milk so transferred or diverted.

§ 1014.45 *Computation of the skim milk and butterfat in each class.* For each month, the market administrator shall correct for mathematical and for other obvious errors the reports of receipts and utilization for the pool plant(s) of each handler and shall compute the pounds of butterfat and skim milk in Class I milk and Class II milk for such handler: *Provided*, That if any of the water contained in the milk from which a product is made is removed before the product is utilized or disposed of by a handler, the pounds of skim milk disposed of in such product shall be considered to be an amount equivalent to the nonfat milk solids contained in such product, plus all of the water originally associated with such solids.

§ 1014.46 *Allocation of skim milk and butterfat classified.* (a) The pounds of skim milk remaining in each class after making the following computations each month, with respect to the pool plant(s) of each handler, shall be the pounds of skim milk in such class allocated to the producer milk of such handler for such month:

(1) Subtract from the total pounds of skim milk in Class II milk the pounds of skim milk assigned to producer milk pursuant to § 1014.42 (b);

(2) Subtract from the remaining pounds of skim milk in Class II milk the pounds of skim milk in other source milk, except that to be subtracted pursuant to subparagraph (3) of this paragraph: *Provided*, That if the pounds of skim milk in other source milk exceed the remaining pounds of skim milk in Class II milk, an amount equal to the difference shall be subtracted from the pounds of skim milk in Class I milk;

(3) Subtract from the pounds of skim milk remaining in Class II milk, the pounds of skim milk in fluid milk products received from plants regulated pursuant to other orders issued pursuant to the act, less any equivalent amounts of skim milk in other source milk allocated to Class I milk at each of such plants, respectively: *Provided*, That if the pounds of skim milk to be subtracted exceed the remaining pounds of skim milk in Class II milk, the balance shall be subtracted from the pounds of skim milk in Class I milk;

(4) Subtract from the remaining pounds of skim milk in Class I milk, the pounds of skim milk contained in inventory of fluid milk products on hand at the beginning of the month;

(5) Subtract from the remaining pounds of skim milk in each class the skim milk contained in fluid milk products received from the pool plants of other handlers, according to the classification of such skim milk as determined pursuant to § 1014.44 (a);

(6) Add to the remaining pounds of skim milk in Class II milk the pounds of skim milk subtracted pursuant to subparagraph (1) of this paragraph; and

(7) If the remaining pounds of skim milk in both classes exceed the pounds of skim milk contained in producer milk, subtract such excess from the remaining pounds of skim milk in series beginning with Class II milk. Any amount so subtracted shall be known as "overage".

(b) Butterfat shall be allocated in accordance with the same procedure outlined for skim milk in paragraph (a) of this section;

(c) Determine the weighted average butterfat content of the Class I and Class II milk allocated to producer milk.

MINIMUM PRICES

§ 1014.50 *Basic formula price.* The highest of the prices computed pursuant to paragraphs (a), (b) and (c) of this section, rounded to the nearest whole cent, shall be known as the basic formula price.

(a) Divide the average of the basic or field prices per hundredweight reported to have been paid or to be paid for milk of 3.5 percent butterfat content received from farmers during the month at the following plants or places for which prices have been reported to the market administrator or to the Department of Agriculture, by 3.5 and multiply by 4.0:

Present Operator and Location

Borden Company, Mount Pleasant, Mich.
Carnation Company, Sparta, Mich.
Pet Milk Company, Hudson, Mich.
Pet Milk Company, Wayland, Mich.
Pet Milk Company, Coopersville, Mich.
Borden Company, Oxfordville, Wis.
Borden Company, New London, Wis.
Carnation Company, Richland Center, Wis.
Carnation Company, Oconomowoc, Wis.
Pet Milk Company, New Glarus, Wis.
Pet Milk Company, Belleville, Wis.
White House Milk Company, Manitowoc, Wis.
White House Milk Company, West Bend, Wis.

(b) The price computed by adding together any plus values computed pursuant to subparagraphs (1) and (2) of this paragraph:

(1) Multiply the Chicago butter price by 4.8;

(2) Deduct five cents from the simple average as computed by the market administrator, of the weighted averages of carlot prices per pound of nonfat dry milk solids, spray and roller process, respectively for human consumption, f. o. b. manufacturing plants in the Chicago area, as published for the period from the 26th day of the preceding month through the 25th day of the current month, by the Department of Agriculture, and multiply by 7.5;

(c) The average of the basic or field prices per hundredweight reported to have been paid or to be paid for milk of 4.0 percent butterfat content received from farmers during the month at the following plants or places for which prices have been reported to the market administrator or to the Department of Agriculture:

Present Operator and Location

Kraft Cheese Company, Newton, Miss.
Borden Company, Starville, Miss.
Carnation Company, Tupelo, Miss.
Brookhaven Creamery, Brookhaven, Miss.
Pet Milk Company, Kosciusko, Miss.

§ 1014.51 *Class prices.* Subject to the provisions of §§ 1014.52 and 1014.53, the minimum prices per hundredweight for the month shall be as follows:

(a) *Class I milk price.* The price per hundredweight for Class I milk for the month shall be the basic formula price

for the preceding month, plus $2.05 during the months of March, April, May and June, and plus $2.45 during all other months.

(b) *Class II milk price.* The price per hundredweight for Class II milk shall be the price determined pursuant to § 1014.50 (c).

§ 1014.52 *Butterfat differential to handlers.* For milk containing more or less than 4.0 percent butterfat, the class prices calculated pursuant to § 1014.51 shall be increased or decreased, respectively, for each one-tenth percent butterfat at the appropriate rate determined as follows:

(a) *Class I price.* Multiply the Chicago butter price for the preceding month by 0.12;

(b) *Class II price.* Multiply the Chicago butter price for the month by 0.11.

§ 1014.53 *Location differentials to handlers.* For that milk which is received from producers at a pool plant located outside the marketing area and 50 miles or more from the City Hall, Biloxi, Mississippi, by shortest hard surfaced highway distance, as determined by the market administrator, and which is transferred in the form of fluid milk products to another pool plant and assigned to Class I pursuant to the proviso of this section, or otherwise classified as Class I milk, the price specified in § 1014.51 (a) shall be reduced by 10 cents: *Provided*, That for purposes of calculating such location differential, products so designated as Class I milk which are transferred between pool plants shall be assigned to any remainder of Class II milk in the transferee-plant after making the calculations prescribed in § 1014.46 (a) (1), (2) and (3), and the comparable steps in § 1014.46 (b) for such plant, and after deducting from such remainder an amount equal to 0.05 times the skim milk and butterfat contained in the producer milk received at the transferee-plant, such assignment to transferor plants to be made first to plants to which the location differential is applicable.

§ 1014.54 *Rate of compensatory payments on unpriced milk.* The rate of compensatory payment per hundredweight shall be calculated as follows:

(a) For any month during which the receipts of producer milk at all pool plants is less than 107 percent of the total Class I sales of all handlers, subtract the uniform price to producers from the Class I price.

(b) For any month during which the receipts of producer milk at all pool plants is 107 percent or more of the total Class I sales of all handlers, subtract the Class II price adjusted by the Class II butterfat differential from the Class I price adjusted by the Class I butterfat differential and in the case of fluid milk products, by the location differential to handlers.

APPLICATION OF PROVISIONS

§ 1014.60 *Producer-handlers.* Sections 1014.40 through 1014.46, 1014.50 through 1014.53, 1014.61, 1014.62, and 1014.70 through 1014.72, 1014.80 through 1014.83, and 1014.90 through 1014.98 shall not apply to a producer-handler.

§ 1014.61 *Plants subject to other Federal orders.* The provisions of this part shall not apply to a plant specified in paragraph (a) or (b) of this section except as follows: The operator of such plant shall, with respect to the total receipts and utilization or disposition of skim milk and butterfat at the plant, make reports to the market administrator at such time and in such manner as the market administrator may require, and allow verification of such reports by the market administrator.

(a) Any distributing plant which would be subject to the classification and pricing provisions of another order issued pursuant to the act unless a greater volume of Class I milk is disposed of during the month from such plant to retail or wholesale outlets (except pool plants) in the Mississippi Gulf Coast marketing area than in the marketing area regulated pursuant to such other order: *Provided*, That, if such distributing plant disposed of Class I milk during the month in the marketing areas of more than one other Federal order, the marketing area in which the most Class I milk is disposed shall determine the Federal order under the provisions of which such plant shall be regulated.

(b) Any supply plant which would be subject to the classification and pricing provisions of another order issued pursuant to the act unless such plant qualified as a pool plant during each of the preceding months of August through March.

§ 1014.62 *Handlers operating nonpool plants.* Each handler who is the operator of a nonpool plant which is not subject to the classification and pricing provisions of another order issued pursuant to the act, shall, on or before the 15th day after the end of each month, pay to the market administrator for deposit into the producer-settlement fund, an amount calculated by multiplying the total hundredweight of butterfat and skim milk disposed of in the form of fluid milk products from such nonpool plant to retail or wholesale outlets (including deliveries by vendors and sales through plant stores) in the marketing area, during the month, by the rate of compensatory payment calculated pursuant to § 1014.54.

DETERMINATION OF UNIFORM PRICE

§ 1014.70 *Net obligation of handlers.* The net obligation of each handler for producer milk received at his pool plant(s) during each month shall be a sum of money computed by the market administrator as follows: (a) Multiply the pounds of such milk in each class by the applicable class price; (b) add together the resulting amounts; (c) add the amounts computed by multiplying the pounds of overage deducted from each class by the applicable class price; (d) add or subtract, as the case may be, an amount necessary to correct errors discovered by the market administrator in the verification of reports of such handler of his receipts and utilization of skim milk and butterfat for previous months; (e) in the case of a handler operating a pool plant which was not a pool plant under this part during each of the preceding five months, add an amount calculated by multiplying the difference between the Class I and the Class II prices adjusted by the appropriate butterfat differentials by any figure determined as follows: Any amount by which the hundredweight of skim milk or butterfat in inventory classified for such month pursuant to § 1014.41 (a) (2) is less than the least hundredweight of skim milk or butterfat, respectively, deducted pursuant to § 1014.46 (a) (4) and (b) for such handler for any month since such plant was not a pool plant; (f) add for each month of July an amount calculated by multiplying by 40 cents the hundredweight by which the inventory classified pursuant to § 1014.41 (a) (2) for the preceding month exceeds any inventory so classified for the preceding February; and (g) add an amount computed by multiplying the hundredweight of skim milk and butterfat subtracted from Class I milk, pursuant to § 1014.46 (a) (2) and (b), by the rate of compensatory payment as determined pursuant to § 1014.54, for the nearest plant(s) from which an equivalent amount of other source milk was received in the form of fluid milk products.

§ 1014.71 *Computation of the uniform price.* For each of the months of August through February, the market administrator shall compute the uniform price per hundredweight of producer milk of 4.0 percent butterfat content, f. o. b. market as follows:

(a) Combine into one total the values computed pursuant to § 1014.70 for the producer milk of all handlers who submit reports prescribed in § 1014.30 and who have made payments for the previous month pursuant to § 1014.90 or § 1014.97;

(b) Subtract, if the average butterfat content of the producer milk included under paragraph (a) of this section is greater than 4.0 percent, or add, if such average butterfat content is less than 4.0 percent, an amount computed as follows: Multiply the variation in the average butterfat content of such milk from 4.0 percent by the butterfat differential computed pursuant to § 1014.91, and multiply the result by the total hundredweight of such milk;

(c) Add an amount equal to the sum of the deductions to be made from producer payments for location differentials pursuant to § 1014.90 (c) (1);

(d) Add an amount equal to one-half of the unobligated balance on hand in the producer-settlement fund;

(e) Divide the resulting amount by the total hundredweight of producer milk included under paragraph (a) of this section; and

(f) Subtract not less than 4 cents nor more than 5 cents.

§ 1014.72 *Computation of uniform prices for base milk and excess milk.* For each of the months of March through July, the market administrator shall compute the uniform prices per hundredweight for base milk and for excess milk,

each of 4.0 percent butterfat content, f. o. b. market as follows:

(a) Compute the aggregate value of excess milk for all handlers who submit reports pursuant to § 1014.30, and who have made payments for the previous month pursuant to § 1014.90 or § 1014.97, as follows: (1) Multiply the hundredweight of such milk not in excess of the total quantity of producer milk assigned to Class II milk in the pool plants of such handlers by the Class II milk price; (2) multiply any additional hundredweight of such milk by the Class I milk price; and (3) add together the resulting amounts;

(b) Divide the aggregate value of excess milk obtained in paragraph (a) of this section by the total hundredweight of such milk, adjust to the nearest cent and subtract 4 cents. The resulting figure shall be the uniform price for excess milk of 4.0 percent butterfat content received from producers;

(c) Subtract an amount determined by multiplying the uniform price obtained in paragraph (b) of this section, plus 4 cents, times the hundredweight of excess milk from the total value of producer milk for the month as determined according to the calculations set forth in § 1014.71 (a) through (d);

(d) Divide the result obtained pursuant to paragraph (c) of this section by the total hundredweight of base milk of handlers included in these computations;

(e) Subtract not less than 4 cents nor more than 5 cents from the price computed pursuant to paragraph (d) of this section. The resulting figure shall be the uniform price for base milk of 4.0 percent butterfat content, f. o. b. market.

BASE RATING

§ 1014.80 *Determination of daily base.* The daily base of each producer shall be calculated by the market administrator as follows: Divide the total pounds of milk received by all handlers of pool plants from such producer during the months of September through December by the number of days from the first day milk is received from such producer during said months to the last day of December, inclusive, but not less than 110 days.

§ 1014.81 *Computation of base.* The base of each producer to be applied during the months of March through July shall be a quantity of milk calculated by the market administrator in the following manner: Multiply the daily base of such producer by the number of days such producer's milk was received by such handler during the month.

§ 1014.82 *Base rules.* The following rules shall apply in connection with the establishment of bases:

(a) A base shall be assigned to the producer for whose account milk is received at a pool plant during the months of September through December;

(b) Bases may be transferred by notifying the market administrator in writing before the last day of any month, for which such base is to be transferred to the person named in such notice. The entire daily base of a producer may be moved from one handler to another handler. *And provided further,* That when a base is transferred to a producer who holds a base pursuant to the provisions of § 1014.80 the total base held by the transferee shall be computed by adding together the milk deliveries of the transferee and transferor made during the base forming period and dividing the total by the number of days from the first day milk was received from either the transferee or transferor during the base forming period to the last day of December inclusive but not less than 110 days.

§ 1014.83 *Announcement of established bases.* On or before March 1, of each year, the market administrator shall notify each producer and the handler receiving milk from such producer of the daily base established by such producer.

PAYMENTS

§ 1014.90 *Payments to producers.* Except as provided in paragraph (e) of this section, each handler shall make payment to each producer from whom milk is received during the month as follows:

(a) On or before the last day of each month, for milk received during the first 15 days of the month, at not less than the price per hundredweight for Class II milk for the preceding month;

(b) On or before the 15th day after the end of each of the months of August through February for milk received during such month at not less than the uniform price per hundredweight, computed for such handler pursuant to § 1014.71, subject to the butterfat differential computed pursuant to § 1014.91 and the location differential computed pursuant to § 1014.92, less proper deductions authorized in writing by such producer and less payment made pursuant to paragraph (a) of this section, and deductions made pursuant to § 1014.94;

(c) On or before the 15th day after the end of each of the months of March through July, after allowance for the amount of payment made pursuant to paragraph (a) of this section for deductions made pursuant to § 1014.94, and for other proper deductions authorized in writing by such producer, as follows:

(1) At not less than the uniform price per hundredweight for base milk computed pursuant to § 1014.72 for the quantity of base milk received from such producer during the month, subject to the butterfat differential computed pursuant to § 1014.91 and the location differential computed pursuant to § 1014.92;

(2) At not less than the uniform price per hundredweight for excess milk computed pursuant to § 1014.72 for the quantity of excess milk received from such producer during the month, subject to the butterfat differential computed pursuant to § 1014.91 and the location differential computed pursuant to § 1014.92;

(d) In making the payments to producers pursuant to paragraphs (b) and (c) of this section, each handler shall furnish each producer from whom he has received milk with a supporting statement in such form that it may be retained by the producer, which shall show for each month:

(1) The month and the identity of the handler and of the producer;

(2) The daily and total pounds and the average butterfat content of milk received from such producer;

(3) The minimum rate or rates at which payment to such producer is required pursuant to this part;

(4) The rate which is used in making the payment, if such rate is other than the applicable minimum rate;

(5) The amount or the rate per hundredweight and nature of each deduction claimed by the handler; and

(6) The net amount of payment to such producer.

(e) In lieu of payments pursuant to paragraphs (a), (b) and (c) of this section, each handler shall make payment to a cooperative association which has filed a written request for such payment with such handler and with respect to producers for whose milk the market administrator determines that such cooperative association is authorized to collect payment, as follows:

(1) On or before the 26th day of each month, an amount equal to not less than the Class II price for the preceding month, multiplied by the hundredweight of milk received during the first 15 days of the month from such producers, and

(2) On or before the 13th day after the end of each month an amount equal to not less than the applicable uniform price(s) pursuant to §§ 1014.71 and 1014.72, multiplied by the hundredweight of milk received from such producers to which each such price is applicable, subject to the butterfat differential computed pursuant to § 1014.91 and the location differential computed pursuant to § 1014.92, less payment made such cooperative association pursuant to subparagraph (1) of this paragraph, and proper deductions authorized in writing by such producers or such cooperative associations.

(f) On or before the 13th day after the end of the month, each handler shall pay to each cooperative association which is also a handler, for milk received from it not less than the value of such milk as classified pursuant to § 1014.44 (a) at the applicable respective class prices, including differentials prescribed by the order.

§ 1014.91 *Butterfat differential to producers.* The applicable uniform prices to be paid each producer pursuant to § 1014.90 shall be increased or decreased for each one-tenth of one percent which the butterfat content of his milk is above or below 4.0 percent, respectively, at the rate determined by multiplying the pounds of butterfat in producer milk allocated to Class I and Class II milk pursuant to § 1014.46 (b) by the respective butterfat differential for each class, dividing the sum of such values by the total pounds of such butterfat and rounding the resultant figure to the nearest half cent.

§ 1014.92 *Location differentials to producers.* In making payment to producers pursuant to § 1014.90, the ap-

plicable uniform prices to be paid for producer milk received at a pool plant located outside the marketing area and more than 50 miles from the City Hall in Biloxi, Mississippi, by the shortest hard-surfaced highway distance, as determined by the market administrator, shall be reduced 10 cents per hundredweight.

§ 1014.93 *Adjustment of accounts.* Whenever audit by the market administrator of any handler's reports, books, records, or accounts, or verification of weights and butterfat tests of milk or milk products discloses errors resulting in money due (a) the market administrator from a handler, (b) a handler from the market administrator, or (c) any producer or cooperative association from a handler, the market administrator shall promptly notify such handler of any amount so due and payment thereof shall be made on or before the next date for making payments set forth under which such error occurred.

§ 1014.94 *Marketing services.* (a) Except as set forth in paragraph (b) of this section, each handler, in making payments to producers for milk (other than milk of his own production) pursuant to § 1014.90, shall deduct 7 cents per hundredweight, or such amount not exceeding 7 cents per hundredweight, as may be prescribed by the Secretary, and shall pay such deductions to the market administrator on or before the 15th day after the end of each month. Such moneys shall be used by the market administrator to provide market information and to check the accuracy of the testing and weighing of their milk for producers who are not receiving such service from a cooperative association:

(b) In the case of producers who are members of a cooperative association which the Secretary has determined is actually performing the services set forth in paragraph (a) of this section, each handler shall make, in lieu of the deduction specified in paragraph (a) of this section, such deductions from the payments to be made to such producers as may be authorized by the membership agreement or marketing contract between such cooperative association and such producers on or before the 15th day after the end of each month, and pay such deductions to the cooperative association of which such producers are members, furnishing a statement showing the amount of any such deductions and the amount and average butterfat test of milk received from each such producer. In lieu of such statement, a handler may authorize the market administrator to furnish such cooperative association the information reported for such producers pursuant to § 1014.90 (d).

§ 1014.95 *Expense of administration.* As his pro rata share of the expense of administration of this part, each handler shall pay to the market administrator on or before the 15th day after the end of the month, for such month, 5 cents per hundredweight, or such amount not exceeding 5 cents per hundredweight, as the Secretary may prescribe, with respect to all (a) receipts of producer milk, including such handler's own production; (b) other source milk allocated to Class I milk pursuant to § 1014.46 (a) (2) and (b); and (c) Class I milk disposed of in the marketing area (except to a pool plant) from a nonpool plant not subject to the classification and pricing provisions of another order issued pursuant to the act.

§ 1014.96 *Producer-settlement fund.* The market administrator shall establish and maintain a separate fund known as the "producer-settlement fund" into which he shall deposit all payments made by handlers pursuant to §§ 1014.62, 1014.93 and 1014.97, and out of which he shall make all payments pursuant to §§ 1014.93 and 1014.98: *Provided,* That any payments due to any handler shall be offset by any payments due from such handler.

§ 1014.97 *Payments to the producer-settlement fund.* On or before the 12th day after the end of each month, each handler shall pay to the market administrator any amount by which the value of his producer milk as computed pursuant to § 1014.70 for such month, is greater than the amount owed by him for such milk at the appropriate uniform price(s) adjusted by the producer butterfat and location differentials.

§ 1014.98 *Payments out of the producer-settlement fund.* On or before the 13th day after the end of each month, the market administrator shall pay to each handler any amount by which the total value of his producer milk, computed pursuant to § 1014.70, for such month is less than the amount owed by him for such milk at the appropriate uniform price(s) adjusted by the producer butterfat and location differentials. If, at such time, the balance in the producer-settlement fund is insufficient to make all payments pursuant to this section, the market administrator shall reduce uniformly such payments and shall complete such payments as soon as the appropriate funds are available.

§ 1014.99 *Termination of obligations.* The provisions of this section shall apply to any obligation under this part for the payment of money.

(a) The obligation of any handler to pay money required to be paid under the terms of this part shall, except as provided in paragraphs (b) and (c) of this section, terminate two years after the last day of the calendar month during which the market administrator receives the handler's utilization report on the milk involved in such obligation, unless within such two-year period the market administrator notifies the handler in writing that such money is due and payable. Service of such notice shall be complete upon mailing to the handler's last known address, and it shall contain but need not be limited to, the following information:

(1) The amount of the obligation;

(2) The month(s) during which the milk, with respect to which the obligation exists, was received or handled; and

(3) If the obligation is payable to one or more producers or to an association of producers, the name of such producer(s) or association of producers, or if the obligation is payable to the market administrator, the account for which it is to be paid.

(b) If a handler fails or refuses, with respect to any obligation under this part, to make available to the market administrator or his representatives all books and records required by this part to be made available, the market administrator may, within the two-year period provided for in paragraph (a) of this section, notify the handler in writing of such failure or refusal. If the market administrator so notifies a handler, the said two-year period with respect to such obligation shall not begin to run until the first day of the calendar month following the month during which all such books and records pertaining to such obligation are made available to the market administrator or his representatives.

(c) Notwithstanding the provisions of paragraphs (a) and (b) of this section, a handler's obligation under this part to pay money shall not be terminated with respect to any transaction involving fraud or willful concealment of a fact, material to the obligation, on the part of the handler against whom the obligation is sought to be imposed.

(d) Any obligation on the part of the market administrator to pay any handler any money which such handler claims to be due him under the terms of this part shall terminate two years after the end of the calendar month during which the milk involved in the claim was received if an underpayment is claimed, or two years after the end of the calendar month during which the payment (including deduction or set-off by the market administrator) was made by the handler if a refund on such payment is claimed, unless such handler, within the applicable period of time, files, pursuant to section 608c (15) (A) of the act, a petition claiming such money.

EFFECTIVE TIME, SUSPENSION, OR TERMINATION

§ 1014.100 *Effective time.* The provisions of this part or any amendment to this part shall become effective at such time as the Secretary may declare and shall continue in force until suspended or terminated pursuant to § 1014.101.

§ 1014.101 *Suspension or termination.* The Secretary may suspend or terminate this part or any provision of this part whenever he finds this part or any provision of this part obstructs or does not tend to effectuate the declared policy of the act. This part shall terminate, in any event, whenever the provisions of the act authorizing it cease to be in effect.

§ 1014.102 *Continuing obligations.* If, upon the suspension or termination of any or all provisions of this part, there are any obligations thereunder, the final accrual or ascertainment of which requires further acts by any person (including the market administrator), such further acts shall be performed notwithstanding such suspension or termination.

§ 1014.103 *Liquidation.* Upon the suspension or termination of the provisions

of this part, except this section, the market administrator, or such liquidating agent as the Secretary may designate, shall, if so directed by the Secretary, liquidate the business of the market administrator's office, dispose of all property in his possession or control, including accounts receivable, and execute and deliver all assignment or other instruments necessary or appropriate to effectuate any such disposition. If a liquidating agent is so designated, all assets, books, and records of the market administrator shall be transferred promptly to such liquidating agent. If, upon such liquidation, the funds on hand exceed the amounts required to pay outstanding obligations of the office of the market administrator and to pay necessary expenses of liquidating and distribution, such excess shall be distributed to contributing handlers and producers in an equitable manner.

MISCELLANEOUS PROVISIONS

§ 1014.110 *Agents.* The Secretary may, by designation in writing, name any officer or employee of the United States to act as his agent or representative in connection with any of the provisions of this part.

§ 1014.111 *Separability of provisions.* If any provision of this part, or its application to any person or circumstances is held invalid, the application of such provision and of the remaining provisions of this part, to other persons or circumstances shall not be affected thereby.

Copies of this notice may be procured from the Hearing Clerk, Room 112, Administration Building, United States Department of Agriculture, Washington 25, D. C., or may be there inspected.

Issued at Washington, D. C., this 25th day of March 1958.

[SEAL] F. R. BURKE,
Acting Deputy Administrator.

[F. R. Doc. 58-2313; Filed, Mar. 27, 1958; 8:50 a. m.]

NOTICES

DEPARTMENT OF DEFENSE

Office of the Secretary

SECRETARY OF THE AIR FORCE

REDELEGATION OF AUTHORITY CONCERNING DISPOSAL OF ELECTRICAL SUB-STATION FACILITY, PERRIN AIR FORCE BASE, TEXAS

On February 13, 1958, the Administrator of General Services, General Services Administration, delegated to me authority to dispose of the electrical sub-station facility at Perrin Air Force Base, Texas, which is surplus to the requirements of the Department of the Air Force.

Pursuant to section 202 (f) of the National Security Act of 1947, as amended (63 Stat. 581), such authority as is vested in me by "Delegation of Authority" by the Administrator of General Services, dated February 13, 1958, to accomplish disposal of the electrical sub-station facility at Perrin Air Force Base, Texas, is hereby redelegated to the Secretary of the Air Force.

The Secretary of the Air Force is hereby authorized to make further redelegation of such authority to any officer or employee of the Department of the Air Force as he may determine necessary.

Attention is invited to the requirement of section 203 (e) of the Federal Property and Administrative Services Act of 1949, as amended, that an explanatory statement be submitted to the appropriate Committees of Congress.

DONALD A. QUARLES,
Deputy Secretary of Defense.

MARCH 20, 1958.

[F. R. Doc. 58-2280; Filed, Mar. 27, 1958; 8:45 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Indian Affairs

[Bureau Order 551, Amdt. 38]

AREA DIRECTORS ET AL.

DELEGATIONS OF AUTHORITY

Section 364 of Order 551 is amended to read as follows:

SEC. 364. *Authority under act of August 27, 1954 (68 Stat. 868).* The taking of action with respect to those matters contained in the following sections of said act:

Section 9.
Section 12.
Section 16 (except the execution of patents).
Section 22.
Section 26 (except the execution of patents).

GLENN L. EMMONS,
Commissioner.

MARCH 24, 1958.

[F. R. Doc. 58-2281; Filed, Mar. 27, 1958; 8:45 a. m.]

Bureau of Land Management

[California 536]

CALIFORNIA

SMALL TRACT CLASSIFICATION ORDER

MARCH 21, 1958.

1. Pursuant to authority delegated to me by the California State Supervisor, Bureau of Land Management under Part II, Document 4, California State Office dated November 19, 1954 (19 F. R. 7697), I hereby classify the following described lands, totaling 272 acres in Calaveras County, California, as suitable for lease and sale for residence purposes under the Small Tract Act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended:

T. 6 N., R. 13 E., M. D. M.
Sec. 1, W½ Lot 4 and NW¼ Lot 11 in NW¼; Lots 14, 15, 16, E½SW¼; Lots 8, 9, 10, 12 in SE¼.
Sec. 12, Lots 1 and 2,
Containing approximately 272 acres, to be subdivided into 95 small tracts by supplemental plat, of which 28 are covered by applications from persons entitled to preference under 43 CFR 257.5 (a).

2. Classification of the above-described lands by this order segregates them from all appropriations, including locations under the mining laws, except as to applications under the mineral leasing laws.

3. The lands classified by this order shall not become subject to application under the Small Tract Act of June 1, 1938 (52 Stat. 609; 43 U. S. C. 682a), as amended, until it is so provided by an order to be issued by an authorized office, opening the lands to application or bid with a preference right to veterans of World War II and of the Korean Conflict and other qualified persons entitled to preference under the Act of September 27, 1944 (58 Stat. 497; 43 U. S. C. 279-284), as amended.

4. All valid applications filed prior to March 19, 1958, will be granted, as soon as possible, the preference right provided for by 43 CFR 257.5 (a).

SHIRO TOKUNO,
Acting Officer in Charge, Northern Field Group, Sacramento, California.

[F. R. Doc. 58-2282; Filed, Mar. 27, 1958; 8:45 a. m.]

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[Order No. 58]

DEPUTY COMMISSIONER

DELEGATION OF CERTAIN ADDITIONAL FUNCTIONS

Pursuant to the authority vested in me as Commissioner of Internal Revenue, it is hereby ordered, subject to my continuing supervision:

(1) There is delegated to the Deputy Commissioner, in addition to his present duties, responsibility for supervising the Regional Commissioners of Internal Revenue, and for making allocations of funds and personnel to them.

(2) Without limitation, this authority includes authority to redelegate any functions vested in the Deputy Commissioner and to amend or revoke existing delegations respecting such activities; provided, that in the absence of such amendment or revocation, delegations respecting such activities shall remain in effect.

(3) The Assistant Commissioner (Operations) retains all of his existing authority and responsibility for supervising the activities of the Alcohol and Tobacco Tax, Appellate, Audit, Collection, Intelligence and International Operations Divisions of the National Office, and for functional supervision of these activities in the field.

(4) Any existing delegation order, mimeograph, instruction, circular or other issuance that is inconsistent with any provision of this order is modified to the extent of such inconsistency.

[SEAL] RUSSELL C. HARRINGTON,
Commissioner.

[F. R. Doc. 58-2298; Filed, Mar. 27, 1958; 8:49 a. m.]

DEPARTMENT OF COMMERCE

Federal Maritime Board

OAHU RAILWAY AND LAND CO. ET AL.

NOTICE OF AGREEMENT FILED FOR APPROVAL

Notice is hereby given that the following described agreement has been filed with the Board for approval pursuant to section 15 of the Shipping Act, 1916 (39 Stat. 733, 46 U. S. C. 814):

Agreement No. 8282, between Oahu Railway and Land Company, Young Brothers Division, and States Steamship Company, covers the transportation of cargo under through bills of lading between U. S. Pacific Coast ports and ports in the Hawaiian Islands, other than Honolulu, with transhipment at Honolulu. This agreement will replace Agreement No. 7781 between Pacific Transport Lines, Inc., which was merged with States Steamship Company, and Young Brothers, Limited, which was merged with Oahu Railway and Land Company.

Interested parties may inspect this agreement and obtain copies thereof at the Regulation Office, Federal Maritime Board, Washington, D. C., and may submit, within 20 days after publication of this notice in the FEDERAL REGISTER, written statements with reference to the agreement and their position as to approval, disapproval, or modification, together with request for hearing should such hearing be desired.

Dated: March 25, 1958.

By order of the Federal Maritime Board.

[SEAL] GEO. A. VIEHMANN,
Assistant Secretary.

[F. R. Doc. 58-2279; Filed, Mar. 27, 1958; 8:45 a. m.]

SHEPARD STEAMSHIP CO. ET AL.

NOTICE OF ANNUAL REVIEW OF BAREBOAT CHARTERS

Notice is hereby given of annual review of the charters covering the following government-owned, war-built, dry-cargo vessels to be made on the dates set forth below:

Vessel and Charterer	*Annual review date*
John M. Bozeman, Shepard Steamship Company	4- 3-58
Thomas Paine, American Coal Shipping, Inc	4-13-58
Samuel F. Miller, Boston Shipping Corporation	4-24-59

Any interested party may state, in writing (original and two copies), his position regarding the continuance or discontinuance of the charters on all of the vessels named above and a written request (also by submission of an original and two copies) for hearing in the premises may be filed with the Secretary, Federal Maritime Board, by the close of business on April 1, 1958.

By order of the Federal Maritime Board.

Dated: March 27, 1958.

[SEAL] JAMES L. PIMPER,
Secretary.

[F. R. Doc. 58-2377; Filed, Mar. 27, 1958; 11:45 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket No. 12317; FCC 58M-278]

MASON COUNTY BROADCASTING CO.

ORDER SCHEDULING PREHEARING CONFERENCE

In re application of Roy C. McConkey, tr/as Mason County Broadcasting Co., Shelton, Washington, Docket No. 12317, File No. BMP-7857; for additional time to construct station KONK.

It is hereby ordered on the Hearing Examiner's own motion that, pursuant to § 1.111 of the Commission's rules, a pre-hearing conference in the above-entitled proceeding is scheduled to be held at 10:00 o'clock a. m., on Tuesday, April 1, 1958, in the offices of this Commission, Washington, D. C.

Released: March 24, 1958.

Dated this 21st day of March 1958.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 58-2299; Filed, Mar. 27, 1958; 8:49 a. m.]

[Docket Nos. 12349-12351; FCC 58-257]

WJPB-TV, INC., ET AL.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of: WJPB-TV, Inc., Weston, West Virginia, Docket No. 12349, File No. BPCT-2318; West Virginia Radio Corporation, Weston, West Virginia, Docket No. 12350, File No. BPCT-2343; Telecasting, Inc., Weston, West Virginia, Docket No. 12351, File No. BPCT-2345; for construction permits for new television broadcast stations.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 19th day of March 1958;

The Commission having under consideration the above-captioned applications each requesting a permit to construct a new television broadcast station to operate on Channel 5 in Weston, West Virginia; and

It appearing that the above-captioned applications are mutually exclusive in that operation by more than one of the applicants, as proposed, would result in mutually destructive interference; and

It further appearing that pursuant to section 309 (b) of the Communications Act of 1934, as amended, the above-named applicants were advised by letters that their applications are mutually exclusive, of the necessity for a hearing, and were advised of all objections to their applications, and were given an opportunity to reply; and

It further appearing that upon due consideration of the above-captioned applications and the replies to the above letters, the Commission finds that pursuant to section 309 (b) of the Communications Act of 1934, as amended, a hearing is necessary; that WJPB-TV, Inc. is legally and financially qualified to construct, own and operate the proposed television broadcast station and is technically so qualified except as to issue "1" below and otherwise qualified except as to issue "2" below; that West Virginia Radio Corporation is legally and financially qualified to construct, own and operate the proposed television broadcast station, and is technically so qualified except as to issue "1" below, and is otherwise qualified except as to issue "3" below; and that it is unable to find that Telecasting, Inc., is legally, financially, technically and otherwise qualified to construct, own and operate the proposed television broadcast station;

It is ordered, That pursuant to section 309 (b) of the Communications Act of 1934, as amended, the above-captioned applications of WJPB-TV, Inc., West Virginia Radio Corporation, and Telecasting, Inc. are designated for hearing in a consolidated proceeding, at a time and place to be specified in a subsequent order, upon the following issues:

1. To determine whether a grant of the applications of WJPB-TV, Inc., West Virginia Radio Corporation and Telecasting, Inc. would be consistent with the provisions of § 3.685 (a) and (b) of the Commission's rules.

2. To determine whether the operation proposed by WJPB-TV, Inc., would violate the provisions of § 3.636 (a) (1) of the rules, in view of the overlap between the proposed station and station WJPB-TV, Fairmont, West Virginia.

3. To determine whether the operation proposed by West Virginia Radio Corporation would violate the provisions of § 3.636 (a) (1) of the rules, in view of the overlap between the proposed station and Station WKJF-TV, Pittsburgh, Pennsylvania.

4. To determine the financial qualifications of Telecasting, Inc. to construct, own and operate the proposed television broadcast station.

5. To determine whether Telecasting, Inc., a Pennsylvania corporation, is qualified to do business in West Virginia.

6. To determine whether the operation proposed by Telecasting, Inc. would violate the provisions of § 3.636 (a) (1) of the rules, in view of the overlap between the proposed station and Television Broadcast Station WENS, Pittsburgh, Pennsylvania.

7. To determine whether the antenna system and site proposed by Telecasting,

Inc., would constitute a hazard to air navigation.

8. To determine on a comparative basis which of the operations proposed in the above-captioned applications would best serve the public interest, convenience and necessity in light of the record made with respect to the significant differences among the applicants as to:

(a) The background and experience of each having a bearing on its ability to own and operate the proposed television broadcast station.

(b) The proposals of each with respect to the management and operation of the proposed television broadcast station.

(c) The programming service proposed in each of the above-captioned applications.

9. To determine in the light of the evidence adduced pursuant to the foregoing issues, which of the above-captioned applications, if any, should be granted.

It is further ordered, That the issues in the above-entitled proceeding may be enlarged by the Examiner, upon his own motion or upon petition properly filed by a party to the proceeding and upon a sufficient allegation of facts in support thereof, by the addition of the following issue: To determine whether the funds available to the applicants will give reasonable assurance that the proposals set forth in the applications will be effectuated.

It is further ordered, That to avail themselves of the opportunity to be heard, WJPB–TV, Inc., West Virginia Radio Corporation and Telecasting, Inc., pursuant to § 1.140 (c) of the Commission's rules, in person or by attorney, shall within 20 days of the mailing of this order file with the Commission, in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

Released: March 24, 1958.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 58–2300; Filed, Mar. 27, 1958; 8:49 a. m.]

[Docket Nos. 12349–12351; FCC 58M–279]

WJPB–TV, INC., ET AL.

ORDER SCHEDULING HEARING

In re applications of WJPB–TV, Inc., Weston, West Virginia, Docket No. 12349, File No. BPCT–2318; West Virginia Radio Corporation, Weston, West Virginia, Docket No. 12350, File No. BPCT–2343; Telecasting, Inc., Weston, West Virginia, Docket No. 12351, File No. BPCT–2345; for construction permits for new television broadcast stations (Channel 5).

It is ordered, This 21st day of March 1958, that Jay A. Kyle will preside at the hearing in the above-entitled proceeding which is hereby scheduled to commence on May 19, 1958, in Washington, D. C.

Released: March 24, 1958.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 58–2301; Filed, Mar. 27, 1958; 8:50 a. m.]

FEDERAL POWER COMMISSION

[Docket No. 12796 etc.]

ASHLAND OIL & REFINING CO. ET AL.

NOTICE OF APPLICATIONS AND DATE OF HEARING

MARCH 24, 1958.

In the matters of Ashland Oil & Refining Co., Docket No. G–12796; Pan American Petroleum Corp., Docket No. G–12868; Kerr-McGee Oil Industries, Inc., Docket No. G–12886; Union Oil Company of California, Docket No. G–12908; Sun Oil Company (Mid-Continent Division), Docket No. G–12972; Schermerhorn Oil Corp., Docket No. G–13200; Oklahoma Natural Gas Co., Docket No. G–13204; Anderson-Prichard Oil Corp., Docket No. G–13209; Cities Service Production Co., Docket No. G–13228; Sinclair Oil & Gas Company, Docket No. G–13299; Shell Oil Co., Docket No. G–13308; Magnolia Petroleum Co., Docket No. G–13324.

Take notice that the respective Applicants, listed in the table below, filed related applications on the dates shown, for certificates of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing the sale of natural gas in interstate commerce to Michigan Wisconsin Pipe Line Company (Michigan Wisconsin) [1] in the Laverne Field, Harper County, Oklahoma, for resale for ultimate public consumption, subject to the jurisdiction of the Commission, all as more fully represented in the respective applications which are on file with the Commission and open to public inspection.

Docket No.; Applicant; and Date of Filing

G–12796; Ashland Oil & Refining Co.; June 26, 1957.
G–12868; Pan American Petroleum Corp.; July 10, 1957.
G–12886; Kerr-McGee Oil Industries, Inc.; July 15, 1957.
G–12908; Union Oil Company of California; July 16, 1957.
G–12972; Sun Oil Company (Mid-Continent Division); July 29, 1957.
G–13200; Schermerhorn Oil Corp.; August 30, 1957.
G–13204; Oklahoma Natural Gas Co.; September 3, 1957.
G–13209; Anderson-Pritchard Oil Corp.; September 3, 1957.
G–13228; Cities Service Production Co.; September 5, 1957.
G–13299; Sinclair Oil & Gas Company; September 20, 1957.
G–13308; Shell Oil Co.; September 24, 1957.
G–13324; Magnolia Petroleum Co.; September 26, 1957.

The proposed sales will be made pursuant to separate gas purchase contracts entered into by the above-named Applicants with Michigan Wisconsin on March 9, 1957. In each case delivery is to be made at the wellhead.

These related matters should be heard on a consolidated record and disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on April 17, 1958, at 9:30 a. m., e. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such applications: *Provided, however*, That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised, it will be unncessary for Applicants to apper or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before April 11, 1958. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] JOSEPH H. GUTRIDE,
Secretary.

[F. R. Doc. 58–2284; Filed, Mar. 27, 1958; 8:46 a. m.]

[1] Michigan Wisconsin Pipe Line Co. filed an application on September 9, 1957, in Docket No. G–13246, for a certificate of public convenience and necessity authorizing the construction and operation of certain facilities to enable it to take the gas to be made available by the above producer-Applicants from the Laverne Field, Harper County, Oklahoma.

SECURITIES AND EXCHANGE COMMISSION

[File Nos. 24S–1499, 24S–1579]

CENTRAL OILS, INC.

NOTICE OF AND ORDER FOR HEARING

MARCH 21, 1958.

I. Central Oils, Incorporated (the Company), an Oregon corporation with an office at 4112 Arcade Building in Seattle, Washington, filed with the Commission a notification and a Rule 219 (b) statement on August 24, 1956 (File No. 24S–1499), as amended on May 17, 1957, relating to a proposed offering of 454,000 shares of the Company's unissued common stock, par value 10 cents, at 10 cents per share, and 454,000 shares of its common stock, par value 10 cents, held in the Company's treasury, at 1 cent per share, to be sold in units of 100 shares each at $11.00 per unit, for a total offering of $49,940; and also filed a second

notification and offering circular with the Commission on November 5, 1957 (File No. 24S–1579), as amended on December 13, 1957, relating to a proposed offering of 950,000 shares of its common stock, par value 10 cents, at 10 cents per share, for the purpose of obtaining an exemption from the registration requirements of the Securities Act of 1933, as amended, pursuant to the provisions of section 3 (b) thereof and Regulation A promulgated thereunder.

II. The Commission on February 28, 1958 issued orders pursuant to Rule 223 (File No. 24S-1499), and Rule 261 (File No. 24S–1579) of the general rules and regulations under the Securities Act of 1933, as amended, temporarily suspending the conditional exemptions under Regulation A, and affording to any person having an interest therein an opportunity to request a hearing. A written request for hearing was received by the Commission.

The Commission, deeming it necessary and appropriate to determine whether to vacate the temporary suspension orders or to enter an order or orders permanently suspending the exemptions,

It is hereby ordered, That a hearing under the applicable provisions of the Securities Act of 1933, as amended, and the rules of the Commission be held in Seattle Regional Office of the Commission, Room 304, 905 Second Avenue Building, Seattle, Washington, at 10:00 a. m., Pacific standard time, May 1, 1958, with respect to the following matters and questions without prejudice, however, to the specification of additional issues which may be presented in these proceedings:

A. Whether the conditional exemption provided by Regulation A is not available for the securities purported to be offered in File No. 24S–1579, in that:

1. The notification and offering circular contain untrue statements of material facts and omit to state material facts necessary in order to make the statements made, in the light of the circumstances under which they are made, not misleading in the following respects, among others, concerning:

(a) The financial statements in that the value of the oil leases is reflected at $130,000, the par value of the stock issued therefor;

(b) The geological data and reports on pages 5 and 6 of the offering circular, in that said reports and data are vague and incomplete and do not relate to the specific area of the company's properties, and imply that the mere presence of anticlimes and certain geological formations indicate that oil accumulations exist in commercial amounts on the company's acreage;

(c) The statements that the company has verbal opinions of many geologists who have visited the well site and structure in that such statements imply that the area is considered favorable by such geologists when, in fact, there has been insufficient information developed to date as to the productivity of the company's property;

(d) The statement that the company has opinions of certain named geologists employed by Northwestern Oils, Inc.;

(e) The failure to disclose adequate information regarding a prior offering by the company for which the company made a filing with the Seattle Regional Office, File No. 24S–1499;

(f) The failure to disclose adequate information concerning the issuance of 1,300,000 of the Company's stock to A. R. Morris and H. C. Evans, president and vice president, respectively, of the Company, and the basis therefor, the joint ownership by them of 500,000 of such shares and dividend restrictions thereon;

(g) The failure to disclose adequate information concerning the use of proceeds of the proposed offering;

(h) The failure to state that the general area in which the Company's operations are being carried out have been classified by the U. S. Geological Survey as having a relatively unfavorable likelihood of yielding commercial quantities of oil;

(i) The failure to describe the terms of the agreement with Northwestern Oils, Inc., for the use of the drilling rig and equipment on the issuer's well site, and the failure to disclose the legal claims of Northwestern Oils, Inc., in said rig and equipment;

(j) The failure to state that the Company has been unable to secure the opinion of a geologist or petroleum engineer recommending that the company continue its drilling operations; and

(k) The failure to disclose on the tectonic map attached to the offering circular the location of the well being drilled by the Company.

B. Whether the order dated February 28, 1958 temporarily suspending the exemption under Regulation A in File No. 24S–1579 should be vacated or made permanent.

C. Whether the order dated February 28, 1958 temporarily suspending the exemption under Regulation A in File No. 24S–1499 should be vacated or made permanent.

It is further ordered, That James G. Ewell or any officer or officers of the Commission designated by it for that purpose shall preside at the hearing, and any officer or officers so designated to preside at any such hearing are hereby authorized to exercise all of the powers granted to the Commission under sections 19 (b), 21 and 22 (c) of the Securities Act of 1933, as amended, and to hearing officers under the Commission's rules of practice.

It is further ordered, That the Secretary of the Commission shall serve a copy of this order by registered mail on Central Oils, Incorporated, that notice of the entering of this order shall be given to all other persons by general release of the Commission and by publication in the FEDERAL REGISTER. Any person who desires to be heard or otherwise wishes to participate in such hearing shall file with the Secretary of the Commission on or before April 28, 1958, a request relative thereto as provided in Rule XVII of the Commission's rules of practice.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 58-2285; Filed, Mar. 27, 1958; 8:46 a. m.]

[File No. 24D–1809]

DIGIT-OMETER CO.

ORDER TEMPORARILY SUSPENDING EXEMPTION, STATEMENT OF REASONS THEREFOR, AND NOTICE OF OPPORTUNITY FOR HEARING

MARCH 24, 1958.

I. The Digit-ometer Company, a Colorado corporation, 1249 Bannock Street, Denver 4, Colorado, filed with the Commission on June 27, 1955 a notification on Form 1–A and offering circular, and filed various amendments thereto, relating to an offering of 86,548 shares of its $1.00 par value common stock at $1.00 per share, for an aggregate of $86,548, for the purpose of obtaining an exemption from the registration requirements of the Securities Act of 1933, as amended, pursuant to the provisions of section 3 (b) thereof and Regulation A, promulgated thereunder; and

II. The Commission has reasonable cause to believe that the terms and conditions of Regulation A have not been complied with in that The Digit-ometer Company has failed to file reports of sales on Form 2–A as required by Rule 224.

III. *It is ordered*, Pursuant to Rule 223 (a) of the general rules and regulations under the Securities Act of 1933, as amended, that the exemption under Regulation A be, and it hereby is, temporarily suspended.

Notice is hereby given that any person having any interest in the matter may file with the Secretary of the Commission a written request for hearing; that within 20 days after receipt of such request, the Commission will, or at any time upon its own motion may, set the matter down for hearing at a place to be designated by the Commission for the purpose of determining whether this order of suspension should be vacated or made permanent, without prejudice, however, to the consideration and presentation of additional matters at the hearing; and that notice of the time and place for said hearing will be promptly given by the Commission.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 58-2286; Filed, Mar. 27, 1958; 8:46 a. m.]

[24W–1911]

GARNER ALUMINUM CORP.

ORDER TEMPORARILY SUSPENDING EXEMPTION, STATEMENT OF REASONS THEREFOR, AND NOTICE OF OPPORTUNITY FOR HEARING

MARCH 24, 1958.

I. Garner Aluminum Corporation, a Maryland corporation with offices loca-

ted at 5828 Third Street SE., Washington, D. C., filed with the Commission on March 7, 1956, a notification and an offering circular and subsequently filed amendments thereto, relating to a proposed offering of 3,000,000 shares of 1 cent par 4 percent preferred stock at 10 cents per share, for the purpose of obtaining an exemption from the registration requirements of the Securities Act of 1933, as amended, pursuant to the provisions of section 3 (b) thereof and Regulation A promulgated thereunder; and

II. The Commission has reasonable cause to believe:

A. That the terms and conditions of Regulation A have not been complied with, in that securities of the issuer were sold to persons without an offering circular having been given to such persons as required by Rule 219 (a) (2).

B. That the offering was made in such manner as to operate as a fraud or deceit upon the purchasers, particularly in connection with oral representations by officers and directors of the issuer concerning the refunding of investors money; the volume of sales of the issuer's securities and the use of proceeds received therefrom.

III. *It is ordered*, Pursuant to Rule 223 (a) of the general rules and regulations under the Securities Act of 1933, as amended, that the exemption under Regulation A be, and it hereby is, temporarily suspended.

Notice is hereby given that any person having any interest in the matter may file with the Secretary of the Commission a written request for hearing; that, within 20 days after receipt of such request, the Commission will, or at any time upon its own motion may, set the matter down for hearing at a place to be designated by the Commission for the purpose of determining whether this order of suspension should be vacated or made permanent, without prejudice, however, to the consideration and presentation of additional matters at the hearing; and that notice of the time and place for said hearing will be promptly given by the Commission.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 58-2287; Filed, Mar. 27, 1958; 8:46 a. m.]

[File No. 812-1142]

NATIONAL AVIATION CORP.

NOTICE OF FILING OF APPLICATION FOR EXEMPTION OF PURCHASE OF SECURITIES DURING EXISTENCE OF UNDERWRITING SYNDICATE

MARCH 21, 1958.

Notice is hereby given that National Aviation Corporation ("Applicant"), a registered closed-end, non-diversified investment company, has filed an application pursuant to section 10 (f) of the Investment Company Act of 1940 ("act"), for an order of the Commission exempting from the provisions of section 10 (f) of the act the proposed investment of not to exceed $250,000 in the __ percent Convertible Subordinated Debentures, dated April 1, 1958, due April 1, 1973 ("the Debentures") and/or common stock, par value $1 per share ("Common Stock"), which American Electronics, Inc. (the "Issuer"), proposes to issue.

Applicant recites that the Issuer is preparing to issue in a public offering an aggregate of 3½ million dollars principal amount of the Debentures and 80,000 shares of the Common Stock which are covered by a Registration Statement filed by the Issuer with the Securities and Exchange Commission on or about March 7, 1958.

The investments of Applicant over the last ten years have been, and are, for the most part, in common stock and in senior securities convertible into common stock, of aircraft manufacturers, air transport companies and in companies either in, or connected with, or serving and/or supplying the aviation industry. The Issuer manufactures electrical and pneumatic ground support and test equipment for jet aircraft and missiles, components for use in guided missiles, fire control systems, electronic data handling and computing machines and servo-mechanism systems for military use.

The investment banking firm of Paine, Webber, Jackson & Curtis is expected to be a member of the underwriting group offering the securities. The application recites that Stuart R. Reed, a director of applicant, is a special partner in the firm of Paine, Webber, Jackson & Curtis. Applicant states that it proposes not to purchase the debentures from Paine, Webber, Jackson & Curtis. The proposed investment would represent approximately 1.32 percent of the total assets of Applicant as of March 12, 1958.

Section 10 (f) of the act provides, among other things, that no registered investment company shall knowingly purchase or otherwise acquire, during the existence of any underwriting or selling syndicate, any security (except a security of which such company is the issuer) a principal underwriter of which is a person of which a director of such registered investment company is an affiliated person. The Commission may exempt a transaction from this prohibition if and to the extent that such exemption is consistent with the protection of investors. Since Reed is an affiliated person of an investment banking firm which will be part of the underwriting group of the debenture offering referred to above, the purchase of such debentures by the Applicant during the underwriting is subject to the provisions of section 10 (f) of the act.

It is represented that the proposed purchase of debentures is consistent with the protection of investors and the investment policies of the Applicant as recited in its registration statement filed with the Commission.

Notice is further given that any interested person may, not later than April 1, 1958, at 1:00 p.m., submit to the Commission in writing any facts bearing upon the desirability of a hearing on the matter and may request that a hearing be held, such request stating the nature of his interest, the reasons for such request and the issues, if any, of fact or law proposed to be controverted, or he may request that he be notified if the Commission should order a hearing thereon. Any such communication or request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after said date, the application may be granted as provided in Rule N-5 of the rules and regulations promulgated under the act.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 58-2288; Filed, Mar. 27, 1958; 8:47 a. m.]

[File No. 24D-2016]

URANIUM QUEEN EXPLORATION CO.

ORDER TEMPORARILY SUSPENDING EXEMPTION, STATEMENT OF REASONS THEREFOR, AND NOTICE OF OPPORTUNITY FOR HEARING

MARCH 24, 1958.

1. Uranium Queen Exploration Company (Uranium Queen), a Colorado corporation, 911½ 16th Street, Greeley, Colorado, filed with the Commission on January 27, 1956, a notification on Form 1-A and offering circular, and filed various amendments thereto, relating to an offering of 1,121,190 shares of its 1 cent par value common stock at 25 cents per share, for an aggregate of $280,297.50, for the purpose of obtaining an exemption from the registration requirements of the Securities Act of 1933, as amended, pursuant to the provisions of section 3 (b) thereof and Regulation A promulgated thereunder; and

II. The Commission has reasonable cause to believe that:

A. The terms and conditions of Regulation A have not been complied with in that Uranium Queen has failed to file reports of sales on Form 2-A as required by Rule 224; and

B. The offering circular contains untrue statements of material facts and omits to state material facts necessary in order to make the statements made, in the light of the circumstances under which they are made, not misleading, in failing to disclose (1) the status of the company's leases, (2) the status of a "working agreement" executed on August 27, 1956, between Uranium Queen and Abajo Uranium Company, (3) the status of options granted Abajo Uranium Company by members of the management of Uranium Queen to purchase 150,000 shares of stock of Uranium Queen held by such members of the management, and (4) the fact that Skyline Securities, Inc., the named underwriter of the securities, has abandoned its office and ceased doing business; and

C. The use of such offering circular without appropriate disclosure in the foregoing matters would operate as a fraud and deceit upon purchasers.

III. *It is ordered*, Pursuant to Rule 223 (a) of the general rules and regulations under the Securities Act of 1933, as amended, that the exemption under Reg-

ulation A be, and it hereby is, temporarily suspended.

Notice is hereby given that any person having any interest in the matter may file with the Secretary of the Commission a written request for hearing; that within 20 days after receipt of such request, the Commission will, or at any time upon its own motion may, set the matter down for hearing at a place to be designated by the Commission for the purpose of determining whether this order of suspension should be vacated or made permanent, without prejudice, however, to the consideration and presentation of additional matters at the hearing; and that notice of the time and place for said hearing will be promptly given by the Commission.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 58-2289; Filed, Mar. 27, 1958; 8:47 a. m.]

INTERSTATE COMMERCE COMMISSION

FOURTH SECTION APPLICATIONS FOR RELIEF

MARCH 24, 1958.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 34561: *Ethylene glycol—Wyandotte, Mich., to Chicago, Ill.* Filed by H. R. Hinsch, Agent (CTR No. 2358), for interested rail carriers. Rates on ethylene glycol, tank-car loads from Wyandotte, Mich., to Chicago, Ill.

Grounds for relief: Water competition.

FSA No. 34562: *Bituminous coal—River King Mine, Ill., to western points.* Filed by R. G. Raasch, Agent (IFA No. 646), for interested rail carriers. Rates on bituminous coal, carloads from River King Mine, Ill., to points in Iowa, Kansas, Minnesota, Missouri, Nebraska, and Wisconsin named or described in the application.

Grounds for relief: Market competition.

Tariff: Agent Raasch's tariff I. C. C. 898.

FSA No. 34563: *Iron and steel articles—Interstate points to Texas points.* Filed by F. C. Kratzmeir, Agent (SWFB No. B-7247), for interested rail carriers. Rates on iron and steel articles, carloads from points in official, southern and southwestern territories, also from Minnequa, Colo., to Armco, Fairbanks, Lois, and Melendy, Tex.

Grounds for relief: Commercial competition with other consuming points in the Houston, Tex., industrial district.

Tariff: Supplement 184 to Agent Kratzmeir's tariff I. C. C. 4170.

FSA No. 34564: *Foodstuffs—Western and southwestern points to southern points.* Filed by W. J. Prueter, Agent (No. A-1969), for interested rail carriers. Rates on canned or preserved foodstuffs and related articles, carloads from points in states in western trunkline and southwestern territories described in the application to points in southern territory.

Grounds for relief: Short-line distance formulas, grouping, and market competition.

Tariffs: Supplement 23 to Agent W. J. Prueter's tariff I. C. C. A-4207. Supplement 28 to Agent F. C. Kratzmeir's tariff I. C. C. 4260.

FSA No. 34565: *Newsprint paper—Arkansas and Texas points to official territory.* Filed by F. C. Kratzmeir, Agent (SWFB No. B-7249), for interested rail carriers. Rates on newsprint paper, carloads, as described in the application from Pine Bluff and Paperton, Ark., and Herty, Tex., to specified points in District of Columbia, Indiana, Kentucky, Ohio, Virginia, and West Virginia.

Grounds for relief: Short-line distance formulas.

Tariff: Supplement 43 to Agent Kratzmeir's tariff I. C. C. 4105.

By the Commission.

[SEAL] HAROLD D. MCCOY, *Secretary.*

[F. R. Doc. 58-2245; Filed, Mar. 26, 1958; 8:48 a. m.]

FOURTH SECTION APPLICATIONS FOR RELIEF

MARCH 25, 1958.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 34566: *Sand—Western points to Virginia and Pennsylvania points.* Filed by F. C. Kratzmeir, Agent (SWFB No. B-7237), for interested rail carriers. Rates on sand, carloads, as described in the application from specified points in Arkansas, Missouri, and Oklahoma to specified points in Pennsylvania and Virginia.

Grounds for relief: Modified short-line distance formula bases.

Tariff: Supplement 150 to Agent Kratzmeir's tariff I. C. C. 4135.

FSA No. 34567: *Steel or wrought iron pipe to points in the southwest.* Filed by F. C. Kratzmeir, Agent (SWFB No. B-7241), for interested rail carriers rates on steel or wrought iron pipe, and related articles, carloads from specified points in official (including Illinois), southern and western trunkline territories to points in Arkansas, Kansas, Louisiana, (west of the Mississippi River), Missouri, Oklahoma and Texas.

Grounds for relief: Barge-truck, rail-barge-truck and market competition.

Tariffs: Supplement 141 to Agent Kratzmeir's tariff I. C. C. 4116 and four other schedules.

FSA No. 34568: *Steel or wrought iron pipe—Baton Rouge, La., to southwest.* Filed by F. C. Kratzmeir, Agent (SWFB No. B-7242), for interested rail carriers. Rates on steel or wrought iron pipe, and related articles, carloads from Baton Rouge, La., to specified points in Arkansas, Louisiana, and Texas.

Grounds for relief: Barge-truck competition.

Tariff: Supplement 142 to Agent Kratzmeir's tariff I. C. C. 4116.

FSA No. 34569: *Liquefied petroleum gas—New Mexico and Texas to Arkansas and Missouri.* Filed by F. C. Kratzmeir, Agent (SWFB No. B-7252), for interested rail carriers. Rates on liquefied petroleum gas, tank-car loads from specified points in New Mexico and Texas to specified points in Arkansas and Missouri.

Grounds for relief: Truck competition.

Tariff: Supplement 166 to Agent Kratzmeir's tariff I. C. C. 4086.

FSA No. 34570: *Vegetable oils—Between points in southern territory.* Filed by O. W. South, Jr., Agent (SFA No. A3629), for interested rail carriers. Rates on vegetable oils, foots or sediments, and related articles, carloads between points in southern territory, and between such points, on the one hand, and Ohio and Mississippi River crossings, and other border points, on the other.

Grounds for relief: Short-line distance formula, grouping, and special treatment for short or relief lines.

Tariff: Supplement 29 to Agent C. A. Spaninger's tariff I.C.C. 1613.

FSA No. 34571: *Tin or terne plate—Eastern points to New Orleans, La.* Filed by O. E. Schultz, Agent (ER No. 2426), for interested rail carriers. Rates on plate, tin or terne, also plate, tin mill black, carloads, as described in the application from specified points in Maryland, Ohio, Pennsylvania, and West Virginia to New Orleans, La.

Grounds for relief: Competition of barge lines from certain points reached by water, and market competition from other origins.

Tariff: Supplement 30 to Agent C. W. Boin's tariff I.C.C. A-1081.

By the Commission.

[SEAL] HAROLD D. MCCOY, *Secretary.*

[F. R. Doc. 58-2294; Filed, Mar. 27, 1958; 8:48 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

[Vesting Order SA-231]

HUNGARIAN DISCOUNT AND EXCHANGE BANK

In re: Debt owing to the Hungarian Discount and Exchange Bank, also known as Ungarische Escompte and Wechsler Bank. F-34-226, F-63-2748 (Zurich) SA.

Under the authority of Title II of the International Claims Settlement Act of 1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106-55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows: That certain debt or other obligation of the Swiss Bank Corporation, New

York Agency, 15 Nassau Street, New York 5, New York, in the sum of $12,531.25, constituting a portion of an account entitled, "Zurich Office, Ordinary Blocked Account," maintained at the aforesaid bank, together with any and all rights to demand, enforce and collect the same,

is property within the United States which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947, was, owned directly or indirectly by the Hungarian Discount and Exchange Bank, also known as Ungarische Escompte and Wechsler Bank, Budapest, Hungary, a national of Hungary as defined in said Executive Order 8389, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said Title II (69 Stat. 562) which provides that:

Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on March 21, 1958.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 58-2267; Filed, Mar. 26, 1958; 8:54 a. m.]

LOUISE WEBERPALS AND ELIZABETH PAPTISTELLA

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Louise Weberpals, Bellngriess, Bavaria, Germany; Claim No. 43032; All right, title, interest and claim of any kind or character of Louise Weberpals in and to the Estate of Max Lowy, deceased, administered in the Superior Court of the State of California in and for the City and County of San Francisco, as vested by Vesting Order No. 5768 (11 F. R. 2007; February 26, 1946).

Elizabeth Paptistella, 563 Capp Street, San Francisco, California; Claim No. 43033; All right, title, interest and claim of any kind or character of Elizabeth Paptistella in and to the estate referred to above.

Vesting Order No. 5768.

Executed at Washington, D. C., on March 18, 1958.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 58-2302; Filed, Mar. 27, 1958; 8:50 a. m.]

[Vesting Order SA-232]

HUNGARIAN GENERAL CREDITBANK

In re: Debt owing to the Hungarian General Creditbank, also known as Ungarische Allgemeine Creditbank, as Magyar Altalanos Hitelbank, and as Banque Generale de Credit Hongrois. F-34-228, F-34-1694.

Under the authority of Title II of the International Claims Settlement Act of 1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106-55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows: That certain debt or other obligation of the Manufacturers Trust Company, 55 Broad Street, New York 15, New York, in the sum of $6,953.75, being a portion of an account in the name of Banco Espirito Santo e Commercial de Lisboa, Lisboa, Portugal, maintained at the aforesaid bank, together with any and all rights to demand, enforce and collect the same,

is property within the United States which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947, was owned directly or indirectly by Hungarian General Creditbank, also known as Ungarische Allgemeine Creditbank, as Magyar Altalanos Hitelbank, and as Banque Generale de Credit Hongrois, Budapest, Hungary, a national of Hungary as defined in said Executive Order 8389, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said Title II (69 Stat. 562) which provides that:

Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on March 21, 1958.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 58-2268; Filed, Mar. 26, 1958; 8:54 a. m.]

EMMA WALLNER ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Emma Wallner, Lodersdorf-Steiermark, Austria; Claim No. 63382; $140.81 in the Treasury of the United States.

Carolina Zotter, Lodersdorf-Steiermark, Austria; Claim No. 63382; $140.81 in the Treasury of the United States.

Maria Wagner, Lodersdorf-Steiermark, Austria; Claim No. 63382; $140.80 in the Treasury of the United States.

Gabriele Kasper, Lodersdorf-Steiermark, Austria; Claim No. 63382; $140.80 in the Treasury of the United States.

Julianna Siegel, Graz, Steiermark, Austria; Claim No. 63383; $563.22 in the Treasury of the United States.

Vesting Order No. 3281.

Executed at Washington, D. C., on March 19, 1958.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 58-2306; Filed, Mar. 27, 1958; 8:50 a. m.]

MRS. W. J. E. FIFIS-FINKEN AND JOHANNA HENDRIKA FINKEN

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Mrs. W. J. E. Fifis-Finken van Tuyll van Serooskerkenplein 35, Amsterdam, The Netherlands; Claim No. 60810; $262.82 in the Treasury of the United States.

Miss Johanna Hendrika Finken, 64, Roelof Hartstraat, Amsterdam, The Netherlands; Claim No. 60811; $262.82 in the Treasury of the United States.

Vesting Order No. 17840.

Executed at Washington, D. C., on March 19, 1958.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 58-2303; Filed, Mar. 27, 1958; 8:50 a. m.]

G. H. HERINGA

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

G. H. Heringa, Oosterwolde, The Netherlands; Claim No. 60433; Vesting Order No. 17947; $1,051.28 in the Treasury of the United States.

Executed at Washington, D. C., on March 19, 1958.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 58-2304; Filed, Mar. 27, 1958; 8:50 a. m.]

ANTOINETTE BIRCKICHT

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Antoinette Birckicht, Haguenau (Bas-Rhin), France; Claim No. 62428; Vesting Order No. 18540; $520.41 in the Treasury of the United States.

Executed at Washington, D. C. on March 19, 1958.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 58-2305; Filed, Mar. 27, 1958; 8:50 a. m.]

MRS. H. A. J. BENJAMINS-VAN SCHAGEN

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Mrs. H. A. J. Benjamins-van Schagen, Amsterdam, Netherlands; Claim No. 66440; $262.82 in the Treasury of the United States.

Executed at Washington, D. C., on March 24, 1958.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 58-2307; Filed, Mar. 27, 1958; 8:50 a. m.]

JOANNA ODILIA MARIA HENRICA VRANCKEN-WAUTERS, ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Joanna Odilia Maria Henrica Vrancken-Wauters, Weert, The Netherlands; $131.41 in the Treasury of the United States to Joanna Odilia Maria Henrica Vrancken-Wauters.

Joseph Louis Jan Maria Peeters, Nijmegen, The Netherlands; Frans Louis Maria Peeters, Nijmegen, The Netherlands; Louis Albert Maria Peeters, Nijmegen, The Netherlands; Maria Theresia Carolina Hubertina Peeters-Vrancken, individually and as guardian of Paul George Maria Peeters and Maria Jeanne Clementine Peeters, minors, Weert, The Netherlands; $131.41 in the Treasury of the United States jointly to all the claimants.

Claim No. 61011; Vesting Order No. 17909.

Executed at Washington, D. C., on March 24, 1958.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 58-2308; Filed, Mar. 27, 1958; 8:50 a. m.]

STATE OF THE NETHERLANDS FOR BENEFIT OF N. V. DE CENTRALE ARBEIDERS VERZEKERING & DEPOSITO BANK ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

The State of the Netherlands for the benefit of:

N. V. de Centrale Arbeiders Verzekering & Deposito Bank, L. S. Claim No. 96; $3,757.00 in the Treasury of the United States; all right title and interest of the Attorney General acquired pursuant to Vesting Order No. 18520 (16 Fed. Reg. 10101, October 3, 1951) in and to Southern Pacific Company—San Francisco Terminal 4/50, Bond No. 2451, in the principal amount of $1,000; all right, title and interest of the Attorney General acquired pursuant to Vesting Order No. 18521 (16 Fed. Reg. 10097, October 3, 1951) in and to Southern Pacific Company—San Francisco Terminal 4/50, Bonds Nos. 12064, 12066/7, 12070 and 12073, in the principal amount of $500. each.

Cash in the Treasury of the United States as noted below, and all right, title and interest of the Attorney General acquired pursuant to Vesting Order No. 18521 (16 Fed. Reg. 10097, October 3, 1951) in and to the securities described below:

Portugeesch Israelietisch Jongensweeshuis "Aby Jetomin", L. S. Claim No. 120; Missouri-Kansas-Texas Railway Company 4/90, Bonds Nos. 25563 and 29927, in the principal amount of $1,000. each.

Ned. R. K. Bond Slagersgezellen, L. S. Claim No. 186; The Atchison Topeka and Santa Fe Railway Company 4/95, Bond No. 28109, and Union Pacific Railroad Company 4/47, Bonds Nos. 314, 6669, 7614 and 7801, all in the principal amount of $500. each; The Kansas City Southern Railway Company 3/50, Bond No. 28813, in the principal amount of $1,000.

Dr. Schaepman Stichting, L. S. Claim No. 187; Cities Service Company 5/58, Debentures Nos. 26546 and 26548/50, all in the principal amount of $1,000. each.

Hamburger & Co's., Bankierskantoor N. V., L. S. Claim No. 237; $1,639.56.

Vesting Orders Nos. 18520 and 18521.

Netherlands Embassy, Office of the Financial Counselor, 25 Broadway, New York 4, New York.

Executed at Washington, D. C., on March 19, 1958.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 58-2309; Filed, Mar. 27, 1958; 8:50 a. m.]

STATE OF THE NETHERLANDS FOR BENEFIT OF W. N. LINDEMAN ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property located in Washington, D. C., including all royalties accrued thereunder and all damages and profits recoverable for past infringement thereof, after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., and Property

Cash in the Treasury of the United States as noted below and all right, title and interest of the Attorney General acquired pursuant to Vesting Order No. 18520 (16 Fed. Reg. 10101, October 3, 1951) in and to the following securities:

The State of the Netherlands for the benefit of:

W. N. Lindeman, L. S. Claim No. 922; The Atchison, Topeka and Santa Fe Railway Company 4/95, Bond No. 60887, in the principal amount of $1,000.

H. Th. Swerissen, L. S. Claim No. 923; The Atchison, Topeka and Santa Fe Railway Company 4/95, Bond No. 72419, in the principal amount of $1,000.

W. A. Piepers, L. S. Claim No. 924; $1,107.55. The Atchison, Topeka and Santa Fe Railway Company 4/95, Bonds Nos. 73504 and 124312, in the principal amount of $1,000 each.

Th. v. d. Winkel, L. S. Claim No. 925; The Atchison, Topeka and Santa Fe Railway Company 4/95, Bond No. 92702, in the principal amount of $1,000.

D. G. Rengers Hora Siccama, L. S. Claim No. 929; Cities Service Company 5/66, Debenture No. 18241, in the principal amount of $1,000.

Cash in the Treasury of the United States as noted below, and all right, title and interest of the Attorney General acquired pursuant to Vesting Order No. 18521 (16 F. R. 10097, October 3, 1951) in and to the following securities:

H. Th. Swerissen, L. S. Claim No. 923; $40.00. The Atchison, Topeka and Santa Fe Railway Company 4/95, Bond No. 40254, in the principal amount of $500.

P. van Leeuwen-Boomkamp, L. S. Claim No. 926; $4,060.00. Kansas City Terminal Railway Co. 4/60, Bonds Nos. 21842/3, 21919, 23385/6, 25174, 25182/3, 25344, 27437, and 28370; Southern Pacific Railway Company 4/55, Bond No. 4356; Southern Railway Company 4/56, Bonds Nos. 1508, 12679, and 27465, all in the principal amount of $1,000 each. Southern Pacific Railway Company 4/55, Bond No. 951, in the principal amount of $500.

Mrs. J. A. F. Westerman-Herberich, L. S. Claim No. 930; Cities Service Company 5/66, Debenture No. 18446, in the principal amount of $1,000.

Mrs. L. J. J. M. Picq-Lemmens, L. S. Claim No. 931; Cities Service Company 5/66, Debenture No. 18772, in the principal amount of $1,000.

Mrs. P. Hasselbach-Jonker, L. S. Claim No. 933; $1,070.00. Cities Service Company 5/58, Debenture No. 8494, in the principal amount of $1,000.

J. Brugma, L. S. Claim No. 934; Cities Service Company 5/58, Debentures Nos. 19011 and 45783, in the principal amount of $1,000 each.

Miss J. W. C. Schönlau, L. S. Claim No. 935; Cities Service Company 5/58, Debenture No. 26790, in the principal amount of $1,000.

F. H. H. Doffegnies, L. S. Claim No. 936; $50.00. Cities Service Company 5/58, Debenture No. 35125, and Cities Service Company 5/69, Debenture No. 1392, all in the principal amount of $1,000 each.

J. Wassenaar, L. S. Claim No. 937; Cities Service Company 5/69, Debenture No. 11527, in the principal amount of $1,000.

J. F. deVogel, L. S. Claim No. 938; Cities Service Company 5/69, Debenture No. 12696, in the principal amount of $1,000.

Vesting Orders Nos. 18520 and 18521.

Netherlands Embassy, Office of the Financial Counselor, 25 Broadway, New York 4, New York.

Executed at Washington, D. C., on March 24, 1958.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

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